

FDE #	FDE Name	Focal Document Element (FDE) Description	STRM Rationale	STRM Relationship	SCF Control	SCF #	Secure Controls Framework (SCF) Control Description	Strength of Relationship	Notes
1	Preliminary provisions	See FDE for details.	Functional	No Relationship	N/A	N/A	N/A	0	
2	Privacy Commissioner	See FDE for details.	Functional	No Relationship	N/A	N/A	N/A	0	
3	Information privacy principles and codes of practice	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
3.1	Information privacy principles	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
3.1.22	Information privacy principles	The information privacy principles are as follows:	Functional	No Relationship	N/A	N/A	N/A	0	
3.1.22.1	Purpose of collection of personal information	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
3.1.22.1(1)	Purpose of collection of personal information	Personal information must not be collected by an agency unless—	Functional	Intersects With	Usage Restrictions of Personal Data (PD)	PRI-05.4	Mechanisms exist to restrict collecting, receiving, processing, storing, transmitting, sharing and/or updating Personal Data (PD) to: (1) The purpose(s) originally collected, consistent with the data privacy notice(s); (2) What is authorized by the data subject, or authorized agent; and (3) What is consistent with applicable laws, regulations and contractual obligations.	5	
3.1.22.1(1)(a)	Purpose of collection of personal information	the information is collected for a lawful purpose connected with a function or an activity of the agency; and	Functional	Intersects With	Usage Restrictions of Personal Data (PD)	PRI-05.4	Mechanisms exist to restrict collecting, receiving, processing, storing, transmitting, sharing and/or updating Personal Data (PD) to: (1) The purpose(s) originally collected, consistent with the data privacy notice(s); (2) What is authorized by the data subject, or authorized agent; and (3) What is consistent with applicable laws, regulations and contractual obligations.	5	
3.1.22.1(1)(b)	Purpose of collection of personal information	the collection of the information is necessary for that purpose.	Functional	Intersects With	Usage Restrictions of Personal Data (PD)	PRI-05.4	Mechanisms exist to restrict collecting, receiving, processing, storing, transmitting, sharing and/or updating Personal Data (PD) to: (1) The purpose(s) originally collected, consistent with the data privacy notice(s); (2) What is authorized by the data subject, or authorized agent; and (3) What is consistent with applicable laws, regulations and contractual obligations.	5	
3.1.22.1(2)	Purpose of collection of personal information	If the lawful purpose for which personal information about an individual is collected does not require the collection of an individual's identifying information, the agency may not require the individual's identifying information.	Functional	No Relationship	N/A	N/A	N/A	0	
3.1.22.2	Source of personal information	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
3.1.22.2(1)	Source of personal information	If an agency collects personal information, the information must be collected from the individual concerned.	Functional	Intersects With	Primary Sources	PRI-04.2	Mechanisms exist to ensure information is directly collected from the data subject, whenever possible.	5	
3.1.22.2(2)	Source of personal information	It is not necessary for an agency to comply with subclause (1) if the agency believes, on reasonable grounds,	Functional	No Relationship	N/A	N/A	N/A	0	
3.1.22.2(2)(a)	Source of personal information	that non-compliance would not prejudice the interests of the individual concerned; or	Functional	No Relationship	N/A	N/A	N/A	0	
3.1.22.2(2)(b)	Source of personal information	that compliance would prejudice the purposes of the collection; or	Functional	No Relationship	N/A	N/A	N/A	0	
3.1.22.2(2)(c)	Source of personal information	that the individual concerned authorises collection of the information from someone else; or	Functional	No Relationship	N/A	N/A	N/A	0	
3.1.22.2(2)(d)	Source of personal information	that the information is publicly available information; or	Functional	No Relationship	N/A	N/A	N/A	0	
3.1.22.2(2)(e)	Source of personal information	that non-compliance is necessary—	Functional	No Relationship	N/A	N/A	N/A	0	
3.1.22.2(2)(e)(i)	Source of personal information	to avoid prejudice to the maintenance of the law by any public sector agency, including prejudice to the prevention, detection, investigation, prosecution, and punishment of offences; or	Functional	No Relationship	N/A	N/A	N/A	0	
3.1.22.2(2)(e)(ii)	Source of personal information	for the enforcement of a law that imposes a pecuniary penalty; or	Functional	No Relationship	N/A	N/A	N/A	0	
3.1.22.2(2)(e)(iii)	Source of personal information	for the protection of public revenue; or	Functional	No Relationship	N/A	N/A	N/A	0	
3.1.22.2(2)(e)(iv)	Source of personal information	for the conduct of proceedings before any court or tribunal (being proceedings that have been commenced or are reasonably in contemplation); or	Functional	No Relationship	N/A	N/A	N/A	0	
3.1.22.2(2)(e)(v)	Source of personal information	to prevent or lessen a serious threat to the life or health of the individual concerned or any other individual; or	Functional	No Relationship	N/A	N/A	N/A	0	
3.1.22.2(2)(f)	Source of personal information	that compliance is not reasonably practicable in the circumstances of the particular case; or	Functional	No Relationship	N/A	N/A	N/A	0	
3.1.22.2(2)(g)	Source of personal information	that the information—	Functional	No Relationship	N/A	N/A	N/A	0	
3.1.22.2(2)(g)(i)	Source of personal information	will not be used in a form in which the individual concerned is identified; or	Functional	No Relationship	N/A	N/A	N/A	0	
3.1.22.2(2)(g)(ii)	Source of personal information	will be used for statistical or research purposes and will not be published in a form that could reasonably be expected to identify the individual concerned.	Functional	No Relationship	N/A	N/A	N/A	0	
3.1.22.3	Collection of personal information from individual concerned	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
3.1.22.3(1)	Collection of personal information from individual concerned	If an agency collects personal information from the individual concerned, the agency must take any steps that are, in the circumstances, reasonable to ensure that the individual concerned is aware of—	Functional	Intersects With	Data Privacy Notice	PRI-02	Mechanisms exist to: (1) Make data privacy notice(s) available to individuals upon first interacting with an organization and subsequently as necessary; (2) Ensure that data privacy notices are clear and easy-to-understand, expressing relevant information about how Personal Data (PD) is collected, received, processed, stored, transmitted, shared, updated and/or disposed; (3) Contain all necessary notice-related criteria required by applicable statutory, regulatory and contractual obligations; (4) Define the scope of PD processing activities, including the geographic locations and third-party recipients that process the PD within the scope of the data privacy notice; (5) Periodically, review and update the content of the privacy notice, as necessary; and (6) Retain prior versions of the privacy notice, in accordance with data retention requirements.	5	
3.1.22.3(1)(a)	Collection of personal information from individual concerned	the fact that the information is being collected; and	Functional	Intersects With	Data Privacy Notice	PRI-02	Mechanisms exist to: (1) Make data privacy notice(s) available to individuals upon first interacting with an organization and subsequently as necessary; (2) Ensure that data privacy notices are clear and easy-to-understand, expressing relevant information about how Personal Data (PD) is collected, received, processed, stored, transmitted, shared, updated and/or disposed; (3) Contain all necessary notice-related criteria required by applicable statutory, regulatory and contractual obligations; (4) Define the scope of PD processing activities, including the geographic locations and third-party recipients that process the PD within the scope of the data privacy notice; (5) Periodically, review and update the content of the privacy notice, as necessary; and (6) Retain prior versions of the privacy notice, in accordance with data retention requirements.	5	

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3.1.22.3(1)(b)	Collection of personal information from individual concerned	the purpose for which the information is being collected; and	Functional	Intersects With	Data Privacy Notice	PRI-02	Mechanisms exist to: (1) Make data privacy notice(s) available to individuals upon first interacting with an organization and subsequently as necessary; (2) Ensure that data privacy notices are clear and easy-to-understand, expressing relevant information about how Personal Data (PD) is collected, received, processed, stored, transmitted, shared, updated and/or disposed; (3) Contain all necessary notice-related criteria required by applicable statutory, regulatory and contractual obligations; (4) Define the scope of PD processing activities, including the geographic locations and third-party recipients that process the PD within the scope of the data privacy notice; (5) Periodically, review and update the content of the privacy notice, as necessary; and (6) Retain prior versions of the privacy notice, in accordance with data retention requirements.	5	
3.1.22.3(1)(c)	Collection of personal information from individual concerned	the intended recipients of the information; and	Functional	Intersects With	Data Privacy Notice	PRI-02	Mechanisms exist to: (1) Make data privacy notice(s) available to individuals upon first interacting with an organization and subsequently as necessary; (2) Ensure that data privacy notices are clear and easy-to-understand, expressing relevant information about how Personal Data (PD) is collected, received, processed, stored, transmitted, shared, updated and/or disposed; (3) Contain all necessary notice-related criteria required by applicable statutory, regulatory and contractual obligations; (4) Define the scope of PD processing activities, including the geographic locations and third-party recipients that process the PD within the scope of the data privacy notice; (5) Periodically, review and update the content of the privacy notice, as necessary; and (6) Retain prior versions of the privacy notice, in accordance with data retention requirements.	5	
3.1.22.3(1)(d)	Collection of personal information from individual concerned	the name and address of—	Functional	Intersects With	Data Privacy Notice	PRI-02	Mechanisms exist to: (1) Make data privacy notice(s) available to individuals upon first interacting with an organization and subsequently as necessary; (2) Ensure that data privacy notices are clear and easy-to-understand, expressing relevant information about how Personal Data (PD) is collected, received, processed, stored, transmitted, shared, updated and/or disposed; (3) Contain all necessary notice-related criteria required by applicable statutory, regulatory and contractual obligations; (4) Define the scope of PD processing activities, including the geographic locations and third-party recipients that process the PD within the scope of the data privacy notice; (5) Periodically, review and update the content of the privacy notice, as necessary; and (6) Retain prior versions of the privacy notice, in accordance with data retention requirements.	5	
3.1.22.3(1)(d)(i)	Collection of personal information from individual concerned	the agency that is collecting the information; and	Functional	Intersects With	Data Privacy Notice	PRI-02	Mechanisms exist to: (1) Make data privacy notice(s) available to individuals upon first interacting with an organization and subsequently as necessary; (2) Ensure that data privacy notices are clear and easy-to-understand, expressing relevant information about how Personal Data (PD) is collected, received, processed, stored, transmitted, shared, updated and/or disposed; (3) Contain all necessary notice-related criteria required by applicable statutory, regulatory and contractual obligations; (4) Define the scope of PD processing activities, including the geographic locations and third-party recipients that process the PD within the scope of the data privacy notice; (5) Periodically, review and update the content of the privacy notice, as necessary; and (6) Retain prior versions of the privacy notice, in accordance with data retention requirements.	5	
3.1.22.3(1)(d)(ii)	Collection of personal information from individual concerned	the agency that will hold the information; and	Functional	Intersects With	Data Privacy Notice	PRI-02	Mechanisms exist to: (1) Make data privacy notice(s) available to individuals upon first interacting with an organization and subsequently as necessary; (2) Ensure that data privacy notices are clear and easy-to-understand, expressing relevant information about how Personal Data (PD) is collected, received, processed, stored, transmitted, shared, updated and/or disposed; (3) Contain all necessary notice-related criteria required by applicable statutory, regulatory and contractual obligations; (4) Define the scope of PD processing activities, including the geographic locations and third-party recipients that process the PD within the scope of the data privacy notice; (5) Periodically, review and update the content of the privacy notice, as necessary; and (6) Retain prior versions of the privacy notice, in accordance with data retention requirements.	5	
3.1.22.3(1)(e)	Collection of personal information from individual concerned	if the collection of the information is authorised or required by or under law,—	Functional	Intersects With	Data Privacy Notice	PRI-02	Mechanisms exist to: (1) Make data privacy notice(s) available to individuals upon first interacting with an organization and subsequently as necessary; (2) Ensure that data privacy notices are clear and easy-to-understand, expressing relevant information about how Personal Data (PD) is collected, received, processed, stored, transmitted, shared, updated and/or disposed; (3) Contain all necessary notice-related criteria required by applicable statutory, regulatory and contractual obligations; (4) Define the scope of PD processing activities, including the geographic locations and third-party recipients that process the PD within the scope of the data privacy notice; (5) Periodically, review and update the content of the privacy notice, as necessary; and (6) Retain prior versions of the privacy notice, in accordance with data retention requirements.	5	
3.1.22.3(1)(e)(i)	Collection of personal information from individual concerned	the particular law by or under which the collection of the information is authorised or required; and	Functional	Intersects With	Data Privacy Notice	PRI-02	Mechanisms exist to: (1) Make data privacy notice(s) available to individuals upon first interacting with an organization and subsequently as necessary; (2) Ensure that data privacy notices are clear and easy-to-understand, expressing relevant information about how Personal Data (PD) is collected, received, processed, stored, transmitted, shared, updated and/or disposed; (3) Contain all necessary notice-related criteria required by applicable statutory, regulatory and contractual obligations; (4) Define the scope of PD processing activities, including the geographic locations and third-party recipients that process the PD within the scope of the data privacy notice; (5) Periodically, review and update the content of the privacy notice, as necessary; and (6) Retain prior versions of the privacy notice, in accordance with data retention requirements.	5	

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3.1.22.3(1)(e)(ii)	Collection of personal information from individual concerned	whether the supply of the information by that individual is voluntary or mandatory; and	Functional	Intersects With	Data Privacy Notice	PRI-02	Mechanisms exist to: (1) Make data privacy notice(s) available to individuals upon first interacting with an organization and subsequently as necessary; (2) Ensure that data privacy notices are clear and easy-to-understand, expressing relevant information about how Personal Data (PD) is collected, received, processed, stored, transmitted, shared, updated and/or disposed; (3) Contain all necessary notice-related criteria required by applicable statutory, regulatory and contractual obligations; (4) Define the scope of PD processing activities, including the geographic locations and third-party recipients that process the PD within the scope of the data privacy notice; (5) Periodically, review and update the content of the privacy notice, as necessary; and (6) Retain prior versions of the privacy notice, in accordance with data retention requirements.	5	
3.1.22.3(1)(f)	Collection of personal information from individual concerned	the consequences (if any) for that individual if all or any part of the requested information is not provided; and	Functional	Intersects With	Data Privacy Notice	PRI-02	Mechanisms exist to: (1) Make data privacy notice(s) available to individuals upon first interacting with an organization and subsequently as necessary; (2) Ensure that data privacy notices are clear and easy-to-understand, expressing relevant information about how Personal Data (PD) is collected, received, processed, stored, transmitted, shared, updated and/or disposed; (3) Contain all necessary notice-related criteria required by applicable statutory, regulatory and contractual obligations; (4) Define the scope of PD processing activities, including the geographic locations and third-party recipients that process the PD within the scope of the data privacy notice; (5) Periodically, review and update the content of the privacy notice, as necessary; and (6) Retain prior versions of the privacy notice, in accordance with data retention requirements.	5	
3.1.22.3(1)(g)	Collection of personal information from individual concerned	the rights of access to, and correction of, information provided by the IPPs.	Functional	Intersects With	Data Privacy Notice	PRI-02	Mechanisms exist to: (1) Make data privacy notice(s) available to individuals upon first interacting with an organization and subsequently as necessary; (2) Ensure that data privacy notices are clear and easy-to-understand, expressing relevant information about how Personal Data (PD) is collected, received, processed, stored, transmitted, shared, updated and/or disposed; (3) Contain all necessary notice-related criteria required by applicable statutory, regulatory and contractual obligations; (4) Define the scope of PD processing activities, including the geographic locations and third-party recipients that process the PD within the scope of the data privacy notice; (5) Periodically, review and update the content of the privacy notice, as necessary; and (6) Retain prior versions of the privacy notice, in accordance with data retention requirements.	5	
3.1.22.3(2)	Collection of personal information from individual concerned	The steps referred to in subclause (1) must be taken before the information is collected or, if that is not practicable, as soon as practicable after the information is collected.	Functional	No Relationship	N/A	N/A	N/A	0	
3.1.22.3(3)	Collection of personal information from individual concerned	An agency is not required to take the steps referred to in subclause (1) in relation to the collection of information from an individual if the agency has taken those steps on a recent previous occasion in relation to the collection, from that individual, of the same information or information of the same kind.	Functional	No Relationship	N/A	N/A	N/A	0	
3.1.22.3(4)	Collection of personal information from individual concerned	It is not necessary for an agency to comply with subclause (1) if the agency believes, on reasonable grounds,—	Functional	No Relationship	N/A	N/A	N/A	0	
3.1.22.3(4)(a)	Collection of personal information from individual concerned	that non-compliance would not prejudice the interests of the individual concerned; or	Functional	No Relationship	N/A	N/A	N/A	0	
3.1.22.3(4)(b)	Collection of personal information from individual concerned	that non-compliance is necessary—	Functional	No Relationship	N/A	N/A	N/A	0	
3.1.22.3(4)(b)(i)	Collection of personal information from individual concerned	to avoid prejudice to the maintenance of the law by any public sector agency, including prejudice to the prevention, detection, investigation, prosecution, and punishment of offences; or	Functional	No Relationship	N/A	N/A	N/A	0	
3.1.22.3(4)(b)(ii)	Collection of personal information from individual concerned	for the enforcement of a law that imposes a pecuniary penalty; or	Functional	No Relationship	N/A	N/A	N/A	0	
3.1.22.3(4)(b)(iii)	Collection of personal information from individual concerned	for the protection of public revenue; or	Functional	No Relationship	N/A	N/A	N/A	0	
3.1.22.3(4)(b)(iv)	Collection of personal information from individual concerned	for the conduct of proceedings before any court or tribunal (being proceedings that have been commenced or are reasonably in contemplation); or	Functional	No Relationship	N/A	N/A	N/A	0	
3.1.22.3(4)(c)	Collection of personal information from individual concerned	that compliance would prejudice the purposes of the collection; or	Functional	No Relationship	N/A	N/A	N/A	0	
3.1.22.3(4)(d)	Collection of personal information from individual concerned	that compliance is not reasonably practicable in the circumstances of the particular case; or	Functional	No Relationship	N/A	N/A	N/A	0	
3.1.22.3(4)(e)	Collection of personal information from individual concerned	that the information—	Functional	No Relationship	N/A	N/A	N/A	0	
3.1.22.3(4)(e)(i)	Collection of personal information from individual concerned	will not be used in a form in which the individual concerned is identified; or	Functional	No Relationship	N/A	N/A	N/A	0	
3.1.22.3(4)(e)(ii)	Collection of personal information from individual concerned	will be used for statistical or research purposes and will not be published in a form that could reasonably be expected to identify the individual concerned.	Functional	No Relationship	N/A	N/A	N/A	0	
3.1.22.4	Manner of collection of personal information	An agency may collect personal information only—	Functional	Intersects With	Reasonable Data Privacy Practices	PRI-01.11	Mechanisms exist to limit the collection, receiving, processing, storage, transmission, sharing, updating and/or disposal of Personal Data (PD) according to reasonable consumer expectations for what is necessary and proportionate.	5	
3.1.22.4(a)	Manner of collection of personal information	by a lawful means; and	Functional	Intersects With	Reasonable Data Privacy Practices	PRI-01.11	Mechanisms exist to limit the collection, receiving, processing, storage, transmission, sharing, updating and/or disposal of Personal Data (PD) according to reasonable consumer expectations for what is necessary and proportionate.	5	
3.1.22.4(b)	Manner of collection of personal information	by a means that, in the circumstances of the case (particularly in circumstances where personal information is being collected from children or young persons),—	Functional	Intersects With	Reasonable Data Privacy Practices	PRI-01.11	Mechanisms exist to limit the collection, receiving, processing, storage, transmission, sharing, updating and/or disposal of Personal Data (PD) according to reasonable consumer expectations for what is necessary and proportionate.	5	
3.1.22.4(b)(i)	Manner of collection of personal information	is fair; and	Functional	Intersects With	Reasonable Data Privacy Practices	PRI-01.11	Mechanisms exist to limit the collection, receiving, processing, storage, transmission, sharing, updating and/or disposal of Personal Data (PD) according to reasonable consumer expectations for what is necessary and proportionate.	5	
3.1.22.4(b)(ii)	Manner of collection of personal information	does not intrude to an unreasonable extent upon the personal affairs of the individual concerned.	Functional	Intersects With	Reasonable Data Privacy Practices	PRI-01.11	Mechanisms exist to limit the collection, receiving, processing, storage, transmission, sharing, updating and/or disposal of Personal Data (PD) according to reasonable consumer expectations for what is necessary and proportionate.	5	
3.1.22.5	Storage and security of personal information	An agency that holds personal information must ensure—	Functional	Intersects With	Reasonable Data Privacy Practices	PRI-01.11	Mechanisms exist to limit the collection, receiving, processing, storage, transmission, sharing, updating and/or disposal of Personal Data (PD) according to reasonable consumer expectations for what is necessary and proportionate.	5	
3.1.22.5(a)	Storage and security of personal information	that the information is protected, by such security safeguards as are reasonable in the circumstances to take, against—	Functional	Intersects With	Security of Personal Data (PD)	PRI-01.6	Mechanisms exist to ensure Personal Data (PD) is protected by logical and physical security safeguards that are sufficient and appropriately scoped to protect the confidentiality and integrity of the PD.	5	

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3.1.22.5(a)(i)	Storage and security of personal information	loss; and	Functional	Intersects With	Security of Personal Data (PD)	PRI-01.6	Mechanisms exist to ensure Personal Data (PD) is protected by logical and physical security safeguards that are sufficient and appropriately scoped to protect the confidentiality and integrity of the PD.	5	
3.1.22.5(a)(ii)	Storage and security of personal information	access, use, modification, or disclosure that is not authorised by the agency; and	Functional	Intersects With	Security of Personal Data (PD)	PRI-01.6	Mechanisms exist to ensure Personal Data (PD) is protected by logical and physical security safeguards that are sufficient and appropriately scoped to protect the confidentiality and integrity of the PD.	5	
3.1.22.5(a)(iii)	Storage and security of personal information	other misuse; and	Functional	Intersects With	Security of Personal Data (PD)	PRI-01.6	Mechanisms exist to ensure Personal Data (PD) is protected by logical and physical security safeguards that are sufficient and appropriately scoped to protect the confidentiality and integrity of the PD.	5	
3.1.22.5(b)	Storage and security of personal information	that, if it is necessary for the information to be given to a person in connection with the provision of a service to the agency, everything reasonably within the power of the agency is done to prevent unauthorised use or unauthorised disclosure of the information.	Functional	Intersects With	Reasonable Data Privacy Practices	PRI-01.11	Mechanisms exist to limit the collection, receiving, processing, storage, transmission, sharing, updating and/or disposal of Personal Data (PD) according to reasonable consumer expectations for what is necessary and proportionate.	5	
3.1.22.6	Access to personal information	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
3.1.22.6(1)	Access to personal information	An individual is entitled to receive from an agency upon request—	Functional	Intersects With	Data Subject Empowerment	PRI-06	Mechanisms exist to provide authenticated data subjects the ability to: (1) Access their Personal Data (PD) that is being processed, stored and shared, except where the burden, risk or expense of providing access would be disproportionate to the benefit offered to the data subject through granting access; (2) Obtain answers on the specifics of how their PD is collected, received, processed, stored, transmitted, shared, updated and/or disposed; (3) Obtain the source(s) of their PD; (4) Obtain the categories of their PD being collected, received, processed, stored and shared; (5) Request correction to their PD due to inaccuracies; (6) Request erasure of their PD; and (7) Restrict the further collecting, receiving, processing, storing, transmitting, updated and/or sharing of their PD.	5	
3.1.22.6(1)(a)	Access to personal information	confirmation of whether the agency holds any personal information about them; and	Functional	Intersects With	Data Subject Empowerment	PRI-06	Mechanisms exist to provide authenticated data subjects the ability to: (1) Access their Personal Data (PD) that is being processed, stored and shared, except where the burden, risk or expense of providing access would be disproportionate to the benefit offered to the data subject through granting access; (2) Obtain answers on the specifics of how their PD is collected, received, processed, stored, transmitted, shared, updated and/or disposed; (3) Obtain the source(s) of their PD; (4) Obtain the categories of their PD being collected, received, processed, stored and shared; (5) Request correction to their PD due to inaccuracies; (6) Request erasure of their PD; and (7) Restrict the further collecting, receiving, processing, storing, transmitting, updated and/or sharing of their PD.	5	
3.1.22.6(1)(b)	Access to personal information	access to their personal information.	Functional	Intersects With	Data Subject Empowerment	PRI-06	Mechanisms exist to provide authenticated data subjects the ability to: (1) Access their Personal Data (PD) that is being processed, stored and shared, except where the burden, risk or expense of providing access would be disproportionate to the benefit offered to the data subject through granting access; (2) Obtain answers on the specifics of how their PD is collected, received, processed, stored, transmitted, shared, updated and/or disposed; (3) Obtain the source(s) of their PD; (4) Obtain the categories of their PD being collected, received, processed, stored and shared; (5) Request correction to their PD due to inaccuracies; (6) Request erasure of their PD; and (7) Restrict the further collecting, receiving, processing, storing, transmitting, updated and/or sharing of their PD.	5	
3.1.22.6(2)	Access to personal information	If an individual concerned is given access to personal information, the individual must be advised that, under IPP 7, the individual may request the correction of that information.	Functional	Intersects With	Data Subject Empowerment	PRI-06	Mechanisms exist to provide authenticated data subjects the ability to: (1) Access their Personal Data (PD) that is being processed, stored and shared, except where the burden, risk or expense of providing access would be disproportionate to the benefit offered to the data subject through granting access; (2) Obtain answers on the specifics of how their PD is collected, received, processed, stored, transmitted, shared, updated and/or disposed; (3) Obtain the source(s) of their PD; (4) Obtain the categories of their PD being collected, received, processed, stored and shared; (5) Request correction to their PD due to inaccuracies; (6) Request erasure of their PD; and (7) Restrict the further collecting, receiving, processing, storing, transmitting, updated and/or sharing of their PD.	5	
3.1.22.6(3)	Access to personal information	This IPP is subject to the provisions of Part 4.	Functional	No Relationship	N/A	N/A	N/A	0	
3.1.22.7	Correction of personal information	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
3.1.22.7(1)	Correction of personal information	An individual whose personal information is held by an agency is entitled to request the agency to correct the information.	Functional	Intersects With	Data Subject Empowerment	PRI-06	Mechanisms exist to provide authenticated data subjects the ability to: (1) Access their Personal Data (PD) that is being processed, stored and shared, except where the burden, risk or expense of providing access would be disproportionate to the benefit offered to the data subject through granting access; (2) Obtain answers on the specifics of how their PD is collected, received, processed, stored, transmitted, shared, updated and/or disposed; (3) Obtain the source(s) of their PD; (4) Obtain the categories of their PD being collected, received, processed, stored and shared; (5) Request correction to their PD due to inaccuracies; (6) Request erasure of their PD; and (7) Restrict the further collecting, receiving, processing, storing, transmitting, updated and/or sharing of their PD.	5	
3.1.22.7(2)	Correction of personal information	An agency that holds personal information must, on request or on its own initiative, take such steps (if any) that are reasonable in the circumstances to ensure that, having regard to the purposes for which the information may lawfully be used, the information is accurate, up to date, complete, and not misleading.	Functional	Intersects With	Data Subject Feedback Management	PRI-06.4	Mechanisms exist to maintain a process to efficiently and effectively respond to requests, complaints, concerns and/or questions from authenticated data subjects about Personal Data (PD) the organization collects, receives, processes, stores, transmits, shares, updates and/or disposes.	5	

FDE #	FDE Name	Focal Document Element (FDE) Description	STRM Rationale	STRM Relationship	SCF Control	SCF #	Secure Controls Framework (SCF) Control Description	Strength of Relationship	Notes
3.1.22.7(3)	Correction of personal information	When requesting the correction of personal information, or at any later time, an individual is entitled to—	Functional	Intersects With	Data Subject Empowerment	PRI-06	Mechanisms exist to provide authenticated data subjects the ability to: (1) Access their Personal Data (PD) that is being processed, stored and shared, except where the burden, risk or expense of providing access would be disproportionate to the benefit offered to the data subject through granting access; (2) Obtain answers on the specifics of how their PD is collected, received, processed, stored, transmitted, shared, updated and/or disposed; (3) Obtain the source(s) of their PD; (4) Obtain the categories of their PD being collected, received, processed, stored and shared; (5) Request correction to their PD due to inaccuracies; (6) Request erasure of their PD; and (7) Restrict the further collecting, receiving, processing, storing, transmitting, updated and/or sharing of their PD.	5	
3.1.22.7(3)(a)	Correction of personal information	provide the agency with a statement of the correction sought to the information (a statement of correction); and	Functional	Intersects With	Data Subject Empowerment	PRI-06	Mechanisms exist to provide authenticated data subjects the ability to: (1) Access their Personal Data (PD) that is being processed, stored and shared, except where the burden, risk or expense of providing access would be disproportionate to the benefit offered to the data subject through granting access; (2) Obtain answers on the specifics of how their PD is collected, received, processed, stored, transmitted, shared, updated and/or disposed; (3) Obtain the source(s) of their PD; (4) Obtain the categories of their PD being collected, received, processed, stored and shared; (5) Request correction to their PD due to inaccuracies; (6) Request erasure of their PD; and (7) Restrict the further collecting, receiving, processing, storing, transmitting, updated and/or sharing of their PD.	5	
3.1.22.7(3)(b)	Correction of personal information	request the agency to attach the statement of correction to the information if the agency does not make the correction sought.	Functional	Intersects With	Notice of Correction or Processing Change	PRI-06.2	Mechanisms exist to notify affected data subjects if their Personal Data (PD) has been corrected, amended or deleted.	5	
3.1.22.7(4)	Correction of personal information	If an agency that holds personal information is not willing to correct the information as requested and has been provided with a statement of correction, the agency must take such steps (if any) that are reasonable in the circumstances to ensure that the statement of correction is attached to the information in a manner that ensures that it will always be read with the information.	Functional	Intersects With	Updating & Correcting Personal Data (PD)	DCH-22.1	Mechanisms exist to utilize technical controls to correct Personal Data (PD) that is inaccurate or outdated, incorrectly determined regarding impact, or incorrectly de-identified.	5	
3.1.22.7(5)	Correction of personal information	If an agency corrects personal information or attaches a statement of correction to personal information, that agency must, so far as is reasonably practicable, inform every other person to whom the agency has disclosed the information.	Functional	Intersects With	Obligation To Inform Third-Parties	PRI-07.3	Mechanisms exist to inform applicable third-parties of any modification, deletion or other change that affects shared Personal Data (PD).	5	
3.1.22.7(6)	Correction of personal information	Subclauses (1) to (4) are subject to the provisions of Part 4.	Functional	No Relationship	N/A	N/A	N/A	0	
3.1.22.8	Accuracy, etc., of personal information to be checked before use or disclosure	An agency that holds personal information must not use or disclose that information without taking any steps that are, in the circumstances, reasonable to ensure that the information is accurate, up to date, complete, relevant, and not misleading.	Functional	Intersects With	Personal Data (PD) Accuracy & Integrity	PRI-05.2	Mechanisms exist to ensure the accuracy and relevance of Personal Data (PD) throughout the information lifecycle by: (1) Keeping PD up-to-date; and (2) Remediating identified inaccuracies, as necessary.	5	
3.1.22.9	Agency not to keep personal information for longer than necessary	An agency that holds personal information must not keep that information for longer than is required for the purposes for which the information may lawfully be used.	Functional	Intersects With	Personal Data (PD) Retention & Disposal	PRI-05	Mechanisms exist to: (1) Retain Personal Data (PD), including metadata, for an organization-defined time period to fulfill the purpose(s) identified in the notice or as required by law; (2) Dispose of, destroy, erases, and/or anonymizes the PD, regardless of the method of storage; and (3) Use organization-defined techniques or methods to ensure secure deletion or destruction of PD (including originals, copies and archived records).	5	
3.1.22.10	Limits on use of personal information	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
3.1.22.10(1)	Limits on use of personal information	An agency that holds personal information that was obtained in connection with one purpose may not use the information for any other purpose unless the agency believes, on reasonable grounds,—	Functional	Intersects With	Usage Restrictions of Personal Data (PD)	PRI-05.4	Mechanisms exist to restrict collecting, receiving, processing, storing, transmitting, sharing and/or updating Personal Data (PD) to: (1) The purpose(s) originally collected, consistent with the data privacy notice(s); (2) What is authorized by the data subject, or authorized agent; and (3) What is consistent with applicable laws, regulations and contractual obligations.	5	
3.1.22.10(1)(a)	Limits on use of personal information	that the purpose for which the information is to be used is directly related to the purpose in connection with which the information was obtained; or	Functional	Intersects With	Usage Restrictions of Personal Data (PD)	PRI-05.4	Mechanisms exist to restrict collecting, receiving, processing, storing, transmitting, sharing and/or updating Personal Data (PD) to: (1) The purpose(s) originally collected, consistent with the data privacy notice(s); (2) What is authorized by the data subject, or authorized agent; and (3) What is consistent with applicable laws, regulations and contractual obligations.	5	
3.1.22.10(1)(b)	Limits on use of personal information	that the information—	Functional	Intersects With	Usage Restrictions of Personal Data (PD)	PRI-05.4	Mechanisms exist to restrict collecting, receiving, processing, storing, transmitting, sharing and/or updating Personal Data (PD) to: (1) The purpose(s) originally collected, consistent with the data privacy notice(s); (2) What is authorized by the data subject, or authorized agent; and (3) What is consistent with applicable laws, regulations and contractual obligations.	5	
3.1.22.10(1)(b)(i)	Limits on use of personal information	is to be used in a form in which the individual concerned is not identified; or	Functional	Intersects With	Usage Restrictions of Personal Data (PD)	PRI-05.4	Mechanisms exist to restrict collecting, receiving, processing, storing, transmitting, sharing and/or updating Personal Data (PD) to: (1) The purpose(s) originally collected, consistent with the data privacy notice(s); (2) What is authorized by the data subject, or authorized agent; and (3) What is consistent with applicable laws, regulations and contractual obligations.	5	
3.1.22.10(1)(b)(ii)	Limits on use of personal information	is to be used for statistical or research purposes and will not be published in a form that could reasonably be expected to identify the individual concerned; or	Functional	Intersects With	Usage Restrictions of Personal Data (PD)	PRI-05.4	Mechanisms exist to restrict collecting, receiving, processing, storing, transmitting, sharing and/or updating Personal Data (PD) to: (1) The purpose(s) originally collected, consistent with the data privacy notice(s); (2) What is authorized by the data subject, or authorized agent; and (3) What is consistent with applicable laws, regulations and contractual obligations.	5	
3.1.22.10(1)(c)	Limits on use of personal information	that the use of the information for that other purpose is authorised by the individual concerned; or	Functional	Intersects With	Usage Restrictions of Personal Data (PD)	PRI-05.4	Mechanisms exist to restrict collecting, receiving, processing, storing, transmitting, sharing and/or updating Personal Data (PD) to: (1) The purpose(s) originally collected, consistent with the data privacy notice(s); (2) What is authorized by the data subject, or authorized agent; and (3) What is consistent with applicable laws, regulations and contractual obligations.	5	
3.1.22.10(1)(d)	Limits on use of personal information	that the source of the information is a publicly available publication and that, in the circumstances of the case, it would not be unfair or unreasonable to use the information; or	Functional	Intersects With	Usage Restrictions of Personal Data (PD)	PRI-05.4	Mechanisms exist to restrict collecting, receiving, processing, storing, transmitting, sharing and/or updating Personal Data (PD) to: (1) The purpose(s) originally collected, consistent with the data privacy notice(s); (2) What is authorized by the data subject, or authorized agent; and (3) What is consistent with applicable laws, regulations and contractual obligations.	5	
3.1.22.10(1)(e)	Limits on use of personal information	that the use of the information for that other purpose is necessary—	Functional	Intersects With	Usage Restrictions of Personal Data (PD)	PRI-05.4	Mechanisms exist to restrict collecting, receiving, processing, storing, transmitting, sharing and/or updating Personal Data (PD) to: (1) The purpose(s) originally collected, consistent with the data privacy notice(s); (2) What is authorized by the data subject, or authorized agent; and (3) What is consistent with applicable laws, regulations and contractual obligations.	5	

FDE #	FDE Name	Focal Document Element (FDE) Description	STRM Rationale	STRM Relationship	SCF Control	SCF #	Secure Controls Framework (SCF) Control Description	Strength of Relationship	Notes
3.1.22.10(1)(e)(i)	Limits on use of personal information	to avoid prejudice to the maintenance of the law by any public sector agency, including prejudice to the prevention, detection, investigation, prosecution, and punishment of offences; or	Functional	Intersects With	Usage Restrictions of Personal Data (PD)	PRI-05.4	Mechanisms exist to restrict collecting, receiving, processing, storing, transmitting, sharing and/or updating Personal Data (PD) to: (1) The purpose(s) originally collected, consistent with the data privacy notice(s); (2) What is authorized by the data subject, or authorized agent; and (3) What is consistent with applicable laws, regulations and contractual obligations.	5	
3.1.22.10(1)(e)(ii)	Limits on use of personal information	for the enforcement of a law that imposes a pecuniary penalty; or	Functional	Intersects With	Usage Restrictions of Personal Data (PD)	PRI-05.4	Mechanisms exist to restrict collecting, receiving, processing, storing, transmitting, sharing and/or updating Personal Data (PD) to: (1) The purpose(s) originally collected, consistent with the data privacy notice(s); (2) What is authorized by the data subject, or authorized agent; and (3) What is consistent with applicable laws, regulations and contractual obligations.	5	
3.1.22.10(1)(e)(iii)	Limits on use of personal information	for the protection of public revenue; or	Functional	Intersects With	Usage Restrictions of Personal Data (PD)	PRI-05.4	Mechanisms exist to restrict collecting, receiving, processing, storing, transmitting, sharing and/or updating Personal Data (PD) to: (1) The purpose(s) originally collected, consistent with the data privacy notice(s); (2) What is authorized by the data subject, or authorized agent; and (3) What is consistent with applicable laws, regulations and contractual obligations.	5	
3.1.22.10(1)(e)(iv)	Limits on use of personal information	for the conduct of proceedings before any court or tribunal (being proceedings that have been commenced or are reasonably in contemplation); or	Functional	Intersects With	Usage Restrictions of Personal Data (PD)	PRI-05.4	Mechanisms exist to restrict collecting, receiving, processing, storing, transmitting, sharing and/or updating Personal Data (PD) to: (1) The purpose(s) originally collected, consistent with the data privacy notice(s); (2) What is authorized by the data subject, or authorized agent; and (3) What is consistent with applicable laws, regulations and contractual obligations.	5	
3.1.22.10(1)(f)	Limits on use of personal information	that the use of the information for that other purpose is necessary to prevent or lessen a serious threat to—	Functional	Intersects With	Usage Restrictions of Personal Data (PD)	PRI-05.4	Mechanisms exist to restrict collecting, receiving, processing, storing, transmitting, sharing and/or updating Personal Data (PD) to: (1) The purpose(s) originally collected, consistent with the data privacy notice(s); (2) What is authorized by the data subject, or authorized agent; and (3) What is consistent with applicable laws, regulations and contractual obligations.	5	
3.1.22.10(1)(f)(i)	Limits on use of personal information	public health or public safety; or	Functional	Intersects With	Usage Restrictions of Personal Data (PD)	PRI-05.4	Mechanisms exist to restrict collecting, receiving, processing, storing, transmitting, sharing and/or updating Personal Data (PD) to: (1) The purpose(s) originally collected, consistent with the data privacy notice(s); (2) What is authorized by the data subject, or authorized agent; and (3) What is consistent with applicable laws, regulations and contractual obligations.	5	
3.1.22.10(1)(f)(ii)	Limits on use of personal information	the life or health of the individual concerned or another individual.	Functional	Intersects With	Usage Restrictions of Personal Data (PD)	PRI-05.4	Mechanisms exist to restrict collecting, receiving, processing, storing, transmitting, sharing and/or updating Personal Data (PD) to: (1) The purpose(s) originally collected, consistent with the data privacy notice(s); (2) What is authorized by the data subject, or authorized agent; and (3) What is consistent with applicable laws, regulations and contractual obligations.	5	
3.1.22.10(2)	Limits on use of personal information	In addition to the uses authorised by subclause (1), an intelligence and security agency that holds personal information that was obtained in connection with one purpose may use the information for any other purpose (a secondary purpose) if the agency believes on reasonable grounds that the use of the information for the secondary purpose is necessary to enable the agency to perform any of its functions.	Functional	No Relationship	N/A	N/A	N/A	0	
3.1.22.11	Limits on disclosure of personal information	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
3.1.22.11(1)	Limits on disclosure of personal information	An agency that holds personal information must not disclose the information to any other agency or to any person unless the agency believes, on reasonable grounds,—	Functional	Intersects With	Information Sharing With Third Parties	PRI-07	Mechanisms exist to disclose Personal Data (PD) to third-parties only for the purposes identified in the data privacy notice and with the implicit or explicit consent of the data subject.	5	
3.1.22.11(1)(a)	Limits on disclosure of personal information	that the disclosure of the information is one of the purposes in connection with which the information was obtained or is directly related to the purposes in connection with which the information was obtained; or	Functional	Intersects With	Information Sharing With Third Parties	PRI-07	Mechanisms exist to disclose Personal Data (PD) to third-parties only for the purposes identified in the data privacy notice and with the implicit or explicit consent of the data subject.	5	
3.1.22.11(1)(b)	Limits on disclosure of personal information	that the disclosure is to the individual concerned; or	Functional	Intersects With	Information Sharing With Third Parties	PRI-07	Mechanisms exist to disclose Personal Data (PD) to third-parties only for the purposes identified in the data privacy notice and with the implicit or explicit consent of the data subject.	5	
3.1.22.11(1)(c)	Limits on disclosure of personal information	that the disclosure is authorised by the individual concerned; or	Functional	Intersects With	Information Sharing With Third Parties	PRI-07	Mechanisms exist to disclose Personal Data (PD) to third-parties only for the purposes identified in the data privacy notice and with the implicit or explicit consent of the data subject.	5	
3.1.22.11(1)(d)	Limits on disclosure of personal information	that the source of the information is a publicly available publication and that, in the circumstances of the case, it would not be unfair or unreasonable to disclose the information; or	Functional	Intersects With	Information Sharing With Third Parties	PRI-07	Mechanisms exist to disclose Personal Data (PD) to third-parties only for the purposes identified in the data privacy notice and with the implicit or explicit consent of the data subject.	5	
3.1.22.11(1)(e)	Limits on disclosure of personal information	that the disclosure of the information is necessary—	Functional	Intersects With	Information Sharing With Third Parties	PRI-07	Mechanisms exist to disclose Personal Data (PD) to third-parties only for the purposes identified in the data privacy notice and with the implicit or explicit consent of the data subject.	5	
3.1.22.11(1)(e)(i)	Limits on disclosure of personal information	to avoid prejudice to the maintenance of the law by any public sector agency, including prejudice to the prevention, detection, investigation, prosecution, and punishment of offences; or	Functional	Intersects With	Information Sharing With Third Parties	PRI-07	Mechanisms exist to disclose Personal Data (PD) to third-parties only for the purposes identified in the data privacy notice and with the implicit or explicit consent of the data subject.	5	
3.1.22.11(1)(e)(ii)	Limits on disclosure of personal information	for the enforcement of a law that imposes a pecuniary penalty; or	Functional	Intersects With	Information Sharing With Third Parties	PRI-07	Mechanisms exist to disclose Personal Data (PD) to third-parties only for the purposes identified in the data privacy notice and with the implicit or explicit consent of the data subject.	5	
3.1.22.11(1)(e)(iii)	Limits on disclosure of personal information	for the protection of public revenue; or	Functional	Intersects With	Information Sharing With Third Parties	PRI-07	Mechanisms exist to disclose Personal Data (PD) to third-parties only for the purposes identified in the data privacy notice and with the implicit or explicit consent of the data subject.	5	
3.1.22.11(1)(e)(iv)	Limits on disclosure of personal information	for the conduct of proceedings before any court or tribunal (being proceedings that have been commenced or are reasonably in contemplation); or	Functional	Intersects With	Information Sharing With Third Parties	PRI-07	Mechanisms exist to disclose Personal Data (PD) to third-parties only for the purposes identified in the data privacy notice and with the implicit or explicit consent of the data subject.	5	
3.1.22.11(1)(f)	Limits on disclosure of personal information	that the disclosure of the information is necessary to prevent or lessen a serious threat to—	Functional	Intersects With	Information Sharing With Third Parties	PRI-07	Mechanisms exist to disclose Personal Data (PD) to third-parties only for the purposes identified in the data privacy notice and with the implicit or explicit consent of the data subject.	5	
3.1.22.11(1)(f)(i)	Limits on disclosure of personal information	public health or public safety; or	Functional	Intersects With	Information Sharing With Third Parties	PRI-07	Mechanisms exist to disclose Personal Data (PD) to third-parties only for the purposes identified in the data privacy notice and with the implicit or explicit consent of the data subject.	5	
3.1.22.11(1)(f)(ii)	Limits on disclosure of personal information	the life or health of the individual concerned or another individual; or	Functional	Intersects With	Information Sharing With Third Parties	PRI-07	Mechanisms exist to disclose Personal Data (PD) to third-parties only for the purposes identified in the data privacy notice and with the implicit or explicit consent of the data subject.	5	
3.1.22.11(1)(g)	Limits on disclosure of personal information	that the disclosure of the information is necessary to enable an intelligence and security agency to perform any of its functions; or	Functional	Intersects With	Information Sharing With Third Parties	PRI-07	Mechanisms exist to disclose Personal Data (PD) to third-parties only for the purposes identified in the data privacy notice and with the implicit or explicit consent of the data subject.	5	
3.1.22.11(1)(h)	Limits on disclosure of personal information	that the information—	Functional	Intersects With	Information Sharing With Third Parties	PRI-07	Mechanisms exist to disclose Personal Data (PD) to third-parties only for the purposes identified in the data privacy notice and with the implicit or explicit consent of the data subject.	5	
3.1.22.11(1)(h)(i)	Limits on disclosure of personal information	is to be used in a form in which the individual concerned is not identified; or	Functional	Intersects With	Information Sharing With Third Parties	PRI-07	Mechanisms exist to disclose Personal Data (PD) to third-parties only for the purposes identified in the data privacy notice and with the implicit or explicit consent of the data subject.	5	
3.1.22.11(1)(h)(ii)	Limits on disclosure of personal information	is to be used for statistical or research purposes and will not be published in a form that could reasonably be expected to identify the individual concerned; or	Functional	Intersects With	Information Sharing With Third Parties	PRI-07	Mechanisms exist to disclose Personal Data (PD) to third-parties only for the purposes identified in the data privacy notice and with the implicit or explicit consent of the data subject.	5	
3.1.22.11(1)(i)	Limits on disclosure of personal information	that the disclosure of the information is necessary to facilitate the sale or other disposition of a business as a going concern.	Functional	Intersects With	Information Sharing With Third Parties	PRI-07	Mechanisms exist to disclose Personal Data (PD) to third-parties only for the purposes identified in the data privacy notice and with the implicit or explicit consent of the data subject.	5	
3.1.22.11(2)	Limits on disclosure of personal information	This IPP is subject to IPP 12.	Functional	No Relationship	N/A	N/A	N/A	0	
3.1.22.12	Disclosure of personal information outside New Zealand	N/A	Functional	No Relationship	N/A	N/A	N/A	0	

FDE #	FDE Name	Focal Document Element (FDE) Description	STRM Rationale	STRM Relationship	SCF Control	SCF #	Secure Controls Framework (SCF) Control Description	Strength of Relationship	Notes
3.1.22.12(1)	Disclosure of personal information outside New Zealand	An agency (A) may disclose personal information to a foreign person or entity (B) in reliance on IPP 11(1)(a), (c), (e), (f), (h), or (i) only if—	Functional	Intersects With	Binding Corporate Rules (BCR)	PRI-01.5	Mechanisms exist to implement and manage Binding Corporate Rules (BCR) (e.g., data sharing agreement) to legally-bind all parties engaged in a joint economic activity that contractually states enforceable rights on data subjects with regard to the processing of their personal data.	5	
3.1.22.12(1)(a)	Disclosure of personal information outside New Zealand	the individual concerned authorises the disclosure to B after being expressly informed by A that B may not be required to protect the information in a way that, overall, provides comparable safeguards to those in this Act; or	Functional	Intersects With	Binding Corporate Rules (BCR)	PRI-01.5	Mechanisms exist to implement and manage Binding Corporate Rules (BCR) (e.g., data sharing agreement) to legally-bind all parties engaged in a joint economic activity that contractually states enforceable rights on data subjects with regard to the processing of their personal data.	5	
3.1.22.12(1)(b)	Disclosure of personal information outside New Zealand	B is carrying on business in New Zealand and, in relation to the information, A believes on reasonable grounds that B is subject to this Act; or	Functional	Intersects With	Binding Corporate Rules (BCR)	PRI-01.5	Mechanisms exist to implement and manage Binding Corporate Rules (BCR) (e.g., data sharing agreement) to legally-bind all parties engaged in a joint economic activity that contractually states enforceable rights on data subjects with regard to the processing of their personal data.	5	
3.1.22.12(1)(c)	Disclosure of personal information outside New Zealand	A believes on reasonable grounds that B is subject to privacy laws that, overall, provide comparable safeguards to those in this Act; or	Functional	Intersects With	Binding Corporate Rules (BCR)	PRI-01.5	Mechanisms exist to implement and manage Binding Corporate Rules (BCR) (e.g., data sharing agreement) to legally-bind all parties engaged in a joint economic activity that contractually states enforceable rights on data subjects with regard to the processing of their personal data.	5	
3.1.22.12(1)(d)	Disclosure of personal information outside New Zealand	A believes on reasonable grounds that B is a participant in a prescribed binding scheme; or	Functional	Intersects With	Binding Corporate Rules (BCR)	PRI-01.5	Mechanisms exist to implement and manage Binding Corporate Rules (BCR) (e.g., data sharing agreement) to legally-bind all parties engaged in a joint economic activity that contractually states enforceable rights on data subjects with regard to the processing of their personal data.	5	
3.1.22.12(1)(e)	Disclosure of personal information outside New Zealand	A believes on reasonable grounds that B is subject to privacy laws of a prescribed country and the disclosure is not precluded by any limitation or qualification prescribed in respect of that country under section 214(3); or	Functional	Intersects With	Binding Corporate Rules (BCR)	PRI-01.5	Mechanisms exist to implement and manage Binding Corporate Rules (BCR) (e.g., data sharing agreement) to legally-bind all parties engaged in a joint economic activity that contractually states enforceable rights on data subjects with regard to the processing of their personal data.	5	
3.1.22.12(1)(f)	Disclosure of personal information outside New Zealand	A otherwise believes on reasonable grounds that B is required to protect the information in a way that, overall, provides comparable safeguards to those in this Act (for example, pursuant to an agreement entered into between A and B).	Functional	Intersects With	Binding Corporate Rules (BCR)	PRI-01.5	Mechanisms exist to implement and manage Binding Corporate Rules (BCR) (e.g., data sharing agreement) to legally-bind all parties engaged in a joint economic activity that contractually states enforceable rights on data subjects with regard to the processing of their personal data.	5	
3.1.22.12(2)	Disclosure of personal information outside New Zealand	However, subclause (1) does not apply if the personal information is to be disclosed to B in reliance on IPP 11(1)(e) or (f) and it is not reasonably practicable in the circumstances for A to comply with the requirements of subclause (1).	Functional	Intersects With	Binding Corporate Rules (BCR)	PRI-01.5	Mechanisms exist to implement and manage Binding Corporate Rules (BCR) (e.g., data sharing agreement) to legally-bind all parties engaged in a joint economic activity that contractually states enforceable rights on data subjects with regard to the processing of their personal data.	5	
3.1.22.12(3)	Disclosure of personal information outside New Zealand	In this IPP,— prescribed binding scheme means a binding scheme specified in regulations made under section 213 prescribed country means a country specified in regulations made under section 214.	Functional	Intersects With	Binding Corporate Rules (BCR)	PRI-01.5	Mechanisms exist to implement and manage Binding Corporate Rules (BCR) (e.g., data sharing agreement) to legally-bind all parties engaged in a joint economic activity that contractually states enforceable rights on data subjects with regard to the processing of their personal data.	5	
3.1.22.13	Unique identifiers	See FDE for details.	Functional	No Relationship	N/A	N/A	N/A	0	
3.1.23	Application of IPPs in relation to information held overseas	See FDE for details.	Functional	No Relationship	N/A	N/A	N/A	0	
3.1.24	Relationships between IPPs and other New Zealand law	See FDE for details.	Functional	No Relationship	N/A	N/A	N/A	0	
3.1.25	IPPs 1 to 4 do not apply to personal information collected before 1 July 1993	See FDE for details.	Functional	No Relationship	N/A	N/A	N/A	0	
3.1.26	Restricted application of IPP 13 to unique identifiers assigned before 1 July 1993	See FDE for details.	Functional	No Relationship	N/A	N/A	N/A	0	
3.1.27	Restricted application of IPPs to personal information collected or held for personal or domestic affairs	See FDE for details.	Functional	No Relationship	N/A	N/A	N/A	0	
3.1.28	IPPs 2, 3, and 4(b) do not apply to personal information collected by intelligence and security agencies	See FDE for details.	Functional	No Relationship	N/A	N/A	N/A	0	
3.1.29	IPPs 6 and 7 do not apply to certain information	See FDE for details.	Functional	No Relationship	N/A	N/A	N/A	0	
3.1.30	Commissioner may authorise collection, use, storage, or disclosure of personal information otherwise in breach of IPP 2 or IPPs 9 to 12	See FDE for details.	Functional	No Relationship	N/A	N/A	N/A	0	
3.1.31	Enforceability of IPPs	See FDE for details.	Functional	No Relationship	N/A	N/A	N/A	0	
3.2	Codes of practice	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
3.2.32	Codes of practice in relation to IPPs	See FDE for details.	Functional	No Relationship	N/A	N/A	N/A	0	
3.2.33	Issue of code of practice	See FDE for details.	Functional	No Relationship	N/A	N/A	N/A	0	
3.2.34	Urgent issue of code of practice	See FDE for details.	Functional	No Relationship	N/A	N/A	N/A	0	
3.2.35	Commencement of code	See FDE for details.	Functional	No Relationship	N/A	N/A	N/A	0	
3.2.36	Application of Legislation Act 2019 to codes	See FDE for details.	Functional	No Relationship	N/A	N/A	N/A	0	
3.2.37	Amendment and revocation of codes of practice	See FDE for details.	Functional	No Relationship	N/A	N/A	N/A	0	
3.2.38	Effect of codes of practice	See FDE for details.	Functional	No Relationship	N/A	N/A	N/A	0	
4	Access to and correction of personal information	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
4.1	Access to personal information	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
4.1.39	Interpretation	See FDE for details.	Functional	No Relationship	N/A	N/A	N/A	0	
4.1.40	Individuals may make IPP 6 request	See FDE for details.	Functional	No Relationship	N/A	N/A	N/A	0	
4.1.41	Urgency	See FDE for details.	Functional	No Relationship	N/A	N/A	N/A	0	
4.1.42	Assistance	See FDE for details.	Functional	No Relationship	N/A	N/A	N/A	0	
4.1.43	Transfer of IPP 6 request	See FDE for details.	Functional	No Relationship	N/A	N/A	N/A	0	
4.1.44	Responding to IPP 6 request	N/A	Functional	No Relationship	N/A	N/A	N/A	0	

FDE #	FDE Name	Focal Document Element (FDE) Description	STRM Rationale	STRM Relationship	SCF Control	SCF #	Secure Controls Framework (SCF) Control Description	Strength of Relationship	Notes
4.1.44(1)	Responding to IPP 6 request	If an agency receives an IPP 6 request and section 43 does not apply, the agency must, as soon as is reasonably practicable, and in any case not later than 20 working days after the day on which the request is received, respond to the request.	Functional	Intersects With	Data Subject Feedback Management	PRI-06.4	Mechanisms exist to maintain a process to efficiently and effectively respond to requests, complaints, concerns and/or questions from authenticated data subjects about Personal Data (PD) the organization collects, receives, processes, stores, transmits, shares, updates and/or disposes.	5	
4.1.44(2)	Responding to IPP 6 request	A response must notify the requestor that—	Functional	Intersects With	Data Subject Feedback Management	PRI-06.4	Mechanisms exist to maintain a process to efficiently and effectively respond to requests, complaints, concerns and/or questions from authenticated data subjects about Personal Data (PD) the organization collects, receives, processes, stores, transmits, shares, updates and/or disposes.	5	
4.1.44(2)(a)	Responding to IPP 6 request	[Repealed]	Functional	No Relationship	N/A	N/A	N/A	0	
4.1.44(2)(b)	Responding to IPP 6 request	the agency does not hold any personal information about the individual to whom the request relates; or	Functional	Intersects With	Data Subject Feedback Management	PRI-06.4	Mechanisms exist to maintain a process to efficiently and effectively respond to requests, complaints, concerns and/or questions from authenticated data subjects about Personal Data (PD) the organization collects, receives, processes, stores, transmits, shares, updates and/or disposes.	5	
4.1.44(2)(c)	Responding to IPP 6 request	the agency does hold personal information about the individual to whom the request relates and, if access to the information has been requested, that—	Functional	Intersects With	Data Subject Feedback Management	PRI-06.4	Mechanisms exist to maintain a process to efficiently and effectively respond to requests, complaints, concerns and/or questions from authenticated data subjects about Personal Data (PD) the organization collects, receives, processes, stores, transmits, shares, updates and/or disposes.	5	
4.1.44(2)(c)(i)	Responding to IPP 6 request	access to that information, or some of that information, is granted; or	Functional	Intersects With	Data Subject Feedback Management	PRI-06.4	Mechanisms exist to maintain a process to efficiently and effectively respond to requests, complaints, concerns and/or questions from authenticated data subjects about Personal Data (PD) the organization collects, receives, processes, stores, transmits, shares, updates and/or disposes.	5	
4.1.44(2)(c)(ii)	Responding to IPP 6 request	access to that information, or some of that information, is refused; or	Functional	Intersects With	Data Subject Feedback Management	PRI-06.4	Mechanisms exist to maintain a process to efficiently and effectively respond to requests, complaints, concerns and/or questions from authenticated data subjects about Personal Data (PD) the organization collects, receives, processes, stores, transmits, shares, updates and/or disposes.	5	
4.1.44(2)(d)	Responding to IPP 6 request	the agency neither confirms nor denies that it holds any personal information about the individual to whom the request relates.	Functional	Intersects With	Data Subject Feedback Management	PRI-06.4	Mechanisms exist to maintain a process to efficiently and effectively respond to requests, complaints, concerns and/or questions from authenticated data subjects about Personal Data (PD) the organization collects, receives, processes, stores, transmits, shares, updates and/or disposes.	5	
4.1.45	Decision to grant access to personal information	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
4.1.45(1)	Decision to grant access to personal information	If an agency grants access to personal information, the notice under section 44(2)(c)(i) must state—	Functional	Intersects With	Data Privacy Notice	PRI-02	Mechanisms exist to: (1) Make data privacy notice(s) available to individuals upon first interacting with an organization and subsequently as necessary; (2) Ensure that data privacy notices are clear and easy-to-understand, expressing relevant information about how Personal Data (PD) is collected, received, processed, stored, transmitted, shared, updated and/or disposed; (3) Contain all necessary notice-related criteria required by applicable statutory, regulatory and contractual obligations; (4) Define the scope of PD processing activities, including the geographic locations and third-party recipients that process the PD within the scope of the data privacy notice; (5) Periodically, review and update the content of the privacy notice, as necessary; and (6) Retain prior versions of the privacy notice, in accordance with data retention requirements.	3	
4.1.45(1)(a)	Decision to grant access to personal information	the way the information is to be made available; and	Functional	Intersects With	Data Privacy Notice	PRI-02	Mechanisms exist to: (1) Make data privacy notice(s) available to individuals upon first interacting with an organization and subsequently as necessary; (2) Ensure that data privacy notices are clear and easy-to-understand, expressing relevant information about how Personal Data (PD) is collected, received, processed, stored, transmitted, shared, updated and/or disposed; (3) Contain all necessary notice-related criteria required by applicable statutory, regulatory and contractual obligations; (4) Define the scope of PD processing activities, including the geographic locations and third-party recipients that process the PD within the scope of the data privacy notice; (5) Periodically, review and update the content of the privacy notice, as necessary; and (6) Retain prior versions of the privacy notice, in accordance with data retention requirements.	3	
4.1.45(1)(b)	Decision to grant access to personal information	the charge (if any) payable under section 66 in respect of the request, and whether all or part of that charge is required to be paid in advance; and	Functional	Intersects With	Data Privacy Notice	PRI-02	Mechanisms exist to: (1) Make data privacy notice(s) available to individuals upon first interacting with an organization and subsequently as necessary; (2) Ensure that data privacy notices are clear and easy-to-understand, expressing relevant information about how Personal Data (PD) is collected, received, processed, stored, transmitted, shared, updated and/or disposed; (3) Contain all necessary notice-related criteria required by applicable statutory, regulatory and contractual obligations; (4) Define the scope of PD processing activities, including the geographic locations and third-party recipients that process the PD within the scope of the data privacy notice; (5) Periodically, review and update the content of the privacy notice, as necessary; and (6) Retain prior versions of the privacy notice, in accordance with data retention requirements.	3	
4.1.45(1)(c)	Decision to grant access to personal information	the requestor's right to make a complaint to the Commissioner about the charge that is payable (if any).	Functional	Intersects With	Data Privacy Notice	PRI-02	Mechanisms exist to: (1) Make data privacy notice(s) available to individuals upon first interacting with an organization and subsequently as necessary; (2) Ensure that data privacy notices are clear and easy-to-understand, expressing relevant information about how Personal Data (PD) is collected, received, processed, stored, transmitted, shared, updated and/or disposed; (3) Contain all necessary notice-related criteria required by applicable statutory, regulatory and contractual obligations; (4) Define the scope of PD processing activities, including the geographic locations and third-party recipients that process the PD within the scope of the data privacy notice; (5) Periodically, review and update the content of the privacy notice, as necessary; and (6) Retain prior versions of the privacy notice, in accordance with data retention requirements.	3	
4.1.45(2)	Decision to grant access to personal information	After giving notice under section 44(2)(c)(i) and receiving any charge required to be paid in advance, the agency must make the information available to the requestor.	Functional	Intersects With	Data Privacy Notice	PRI-02	Mechanisms exist to: (1) Make data privacy notice(s) available to individuals upon first interacting with an organization and subsequently as necessary; (2) Ensure that data privacy notices are clear and easy-to-understand, expressing relevant information about how Personal Data (PD) is collected, received, processed, stored, transmitted, shared, updated and/or disposed; (3) Contain all necessary notice-related criteria required by applicable statutory, regulatory and contractual obligations; (4) Define the scope of PD processing activities, including the geographic locations and third-party recipients that process the PD within the scope of the data privacy notice; (5) Periodically, review and update the content of the privacy notice, as necessary; and (6) Retain prior versions of the privacy notice, in accordance with data retention requirements.	3	

FDE #	FDE Name	Focal Document Element (FDE) Description	STRM Rationale	STRM Relationship	SCF Control	SCF #	Secure Controls Framework (SCF) Control Description	Strength of Relationship	Notes
4.1.46	Decision to refuse access to personal information	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
4.1.46(1)	Decision to refuse access to personal information	An agency may refuse access to the personal information requested, or some of the personal information requested, only if the agency is able to rely on any of sections 49 to 53 (see also section 24).	Functional	Intersects With	Disclosure Request Rejections	PRI-07.4	Mechanisms exist to reject disclosure requests that are: (1) Unjustified; (2) Unauthenticated or untrustworthy; and/or (3) Unlawful.	5	
4.1.46(2)	Decision to refuse access to personal information	The notice given under section 44(2)(c)(i) must state—	Functional	Intersects With	Justification To Reject Disclosure Requests	PRI-07.5	Mechanisms exist to document justifiable reasons for rejecting a data subject's access request for disclosure when the request is: (1) Harassing; (2) Repetitive; (3) Fraudulent; (4) Unjustified; and/or (5) Unlawful.	5	
4.1.46(2)(a)	Decision to refuse access to personal information	the reason for the refusal; and	Functional	Intersects With	Data Subject Communications	PRI-17	Mechanisms exist to craft disclosures and communications to data subjects in a manner that is concise, unambiguous and understandable by a reasonable person.	5	
4.1.46(2)(b)	Decision to refuse access to personal information	the requestor's right to make a complaint to the Commissioner in respect of the refusal.	Functional	Intersects With	Data Subject Communications	PRI-17	Mechanisms exist to craft disclosures and communications to data subjects in a manner that is concise, unambiguous and understandable by a reasonable person.	5	
4.1.46(3)	Decision to refuse access to personal information	The notice must also state the grounds in support of the reason for the refusal if—	Functional	Intersects With	Justification To Reject Disclosure Requests	PRI-07.5	Mechanisms exist to document justifiable reasons for rejecting a data subject's access request for disclosure when the request is: (1) Harassing; (2) Repetitive; (3) Fraudulent; (4) Unjustified; and/or (5) Unlawful.	5	
4.1.46(3)(a)	Decision to refuse access to personal information	the reason is that set out in section 50; or	Functional	Intersects With	Data Subject Communications	PRI-17	Mechanisms exist to craft disclosures and communications to data subjects in a manner that is concise, unambiguous and understandable by a reasonable person.	5	
4.1.46(3)(b)	Decision to refuse access to personal information	the reason is not that set out in section 50, but the requestor has requested disclosure of the grounds.	Functional	Intersects With	Data Subject Communications	PRI-17	Mechanisms exist to craft disclosures and communications to data subjects in a manner that is concise, unambiguous and understandable by a reasonable person.	5	
4.1.46(4)	Decision to refuse access to personal information	However,—	Functional	No Relationship	N/A	N/A	N/A	0	
4.1.46(4)(a)	Decision to refuse access to personal information	subsection (3)(a) does not apply if disclosing the grounds would prejudice the interests protected by section 50;	Functional	No Relationship	N/A	N/A	N/A	0	
4.1.46(4)(b)	Decision to refuse access to personal information	subsection (3)(b) does not apply if disclosing the grounds would prejudice the interests protected by any of sections 49, 51, and 53;	Functional	No Relationship	N/A	N/A	N/A	0	
4.1.46(4)(c)	Decision to refuse access to personal information	subsection (3)(b) does not apply if disclosing the grounds would prejudice the interests protected by section 52 and the reason for not disclosing those grounds is not outweighed by other considerations that make it desirable, in the public interest, to disclose them.	Functional	No Relationship	N/A	N/A	N/A	0	
4.1.47	Decision to neither confirm nor deny personal information is held	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
4.1.47(1)	Decision to neither confirm nor deny personal information is held	An agency may neither confirm nor deny that it holds the personal information, or some of the personal information, requested if the agency—	Functional	Intersects With	Reasonable Data Privacy Practices	PRI-01.11	Mechanisms exist to limit the collection, receiving, processing, storage, transmission, sharing, updating and/or disposal of Personal Data (PD) according to reasonable consumer expectations for what is necessary and proportionate.	5	
4.1.47(1)(a)	Decision to neither confirm nor deny personal information is held	is able to rely on section 49(1)(a)(i) or (d), 51, 52, or 53(c) to refuse to disclose the information or refuse to disclose the information if it existed; and	Functional	Intersects With	Reasonable Data Privacy Practices	PRI-01.11	Mechanisms exist to limit the collection, receiving, processing, storage, transmission, sharing, updating and/or disposal of Personal Data (PD) according to reasonable consumer expectations for what is necessary and proportionate.	5	
4.1.47(1)(b)	Decision to neither confirm nor deny personal information is held	is satisfied that the interest protected by any of those provisions would be likely to be prejudiced by the agency confirming whether or not it holds information about the requestor.	Functional	Intersects With	Reasonable Data Privacy Practices	PRI-01.11	Mechanisms exist to limit the collection, receiving, processing, storage, transmission, sharing, updating and/or disposal of Personal Data (PD) according to reasonable consumer expectations for what is necessary and proportionate.	5	
4.1.47(2)	Decision to neither confirm nor deny personal information is held	The notice given under section 44(2)(d) must inform the requestor of the requestor's right to make a complaint to the Commissioner in respect of the agency's response.	Functional	No Relationship	N/A	N/A	N/A	0	
4.1.48	Extension of time limits	See FDE for details.	Functional	No Relationship	N/A	N/A	N/A	0	
4.1.49	Protection, etc., of individual as reason for refusing access to personal information	See FDE for details.	Functional	No Relationship	N/A	N/A	N/A	0	
4.1.50	Evaluative material as reason for refusing access to personal information	See FDE for details.	Functional	No Relationship	N/A	N/A	N/A	0	
4.1.51	Security, defence, international relations as reason for refusing access to personal information	See FDE for details.	Functional	No Relationship	N/A	N/A	N/A	0	
4.1.52	Trade secret as reason for refusing access to personal information	See FDE for details.	Functional	No Relationship	N/A	N/A	N/A	0	
4.1.53	Other reasons for refusing access to personal information	See FDE for details.	Functional	No Relationship	N/A	N/A	N/A	0	
4.1.54	Agency may impose conditions instead of refusing access to personal information	See FDE for details.	Functional	No Relationship	N/A	N/A	N/A	0	
4.1.55	Withholding personal information contained in document	See FDE for details.	Functional	No Relationship	N/A	N/A	N/A	0	
4.1.56	Ways personal information in document may be made available	See FDE for details.	Functional	No Relationship	N/A	N/A	N/A	0	
4.1.57	Responsibilities of agency before giving access to personal information	See FDE for details.	Functional	No Relationship	N/A	N/A	N/A	0	
4.1.58	Ways personal information in document may be made available	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
4.1.58(1)	Ways personal information in document may be made available	If the personal information requested by an individual is in a document, that information may be made available in 1 or more of the following ways:	Functional	Intersects With	Personal Data (PD) Exports	PRI-06.7	Mechanisms exist to export a data subject's available Personal Data (PD) in a readily usable format, upon an authenticated request.	5	
4.1.58(1)(a)	Ways personal information in document may be made available	by giving the requestor a reasonable opportunity to inspect the document; or	Functional	Intersects With	Personal Data (PD) Exports	PRI-06.7	Mechanisms exist to export a data subject's available Personal Data (PD) in a readily usable format, upon an authenticated request.	5	
4.1.58(1)(b)	Ways personal information in document may be made available	by providing the requestor with a hard copy or an electronic copy of the document; or	Functional	Intersects With	Personal Data (PD) Exports	PRI-06.7	Mechanisms exist to export a data subject's available Personal Data (PD) in a readily usable format, upon an authenticated request.	5	
4.1.58(1)(c)	Ways personal information in document may be made available	in the case of a document that is an article or a thing from which sounds or visual images are capable of being reproduced, by making arrangements for the requestor to hear or view the sounds or visual images; or	Functional	Intersects With	Personal Data (PD) Exports	PRI-06.7	Mechanisms exist to export a data subject's available Personal Data (PD) in a readily usable format, upon an authenticated request.	5	

FDE #	FDE Name	Focal Document Element (FDE) Description	STRM Rationale	STRM Relationship	SCF Control	SCF #	Secure Controls Framework (SCF) Control Description	Strength of Relationship	Notes
4.1.58(1)(d)	Ways personal information in document may be made available	in the case of a document by which words are recorded in a manner in which they are capable of being reproduced in the form of sound or in which words are contained in the form of shorthand writing or in codified form, by providing the requestor with a written transcript of the words recorded or contained in the document; or	Functional	Intersects With	Personal Data (PD) Exports	PRI-06.7	Mechanisms exist to export a data subject's available Personal Data (PD) in a readily usable format, upon an authenticated request.	5	
4.1.58(1)(e)	Ways personal information in document may be made available	by giving, in any manner, an excerpt or a summary of the document's contents; or	Functional	Intersects With	Personal Data (PD) Exports	PRI-06.7	Mechanisms exist to export a data subject's available Personal Data (PD) in a readily usable format, upon an authenticated request.	5	
4.1.58(1)(f)	Ways personal information in document may be made available	by giving oral information about the document's contents.	Functional	Intersects With	Personal Data (PD) Exports	PRI-06.7	Mechanisms exist to export a data subject's available Personal Data (PD) in a readily usable format, upon an authenticated request.	5	
4.1.58(2)	Ways personal information in document may be made available	Subject to section 55, the agency must make the information available in the way preferred by the requestor unless to do so would—	Functional	No Relationship	N/A	N/A	N/A	0	
4.1.58(2)(a)	Ways personal information in document may be made available	impair the efficient administration of the agency; or	Functional	No Relationship	N/A	N/A	N/A	0	
4.1.58(2)(b)	Ways personal information in document may be made available	be contrary to any legal duty of the agency in respect of the document; or	Functional	No Relationship	N/A	N/A	N/A	0	
4.1.58(2)(c)	Ways personal information in document may be made available	prejudice an interest protected by any of sections 49 to 53.	Functional	No Relationship	N/A	N/A	N/A	0	
4.1.58(3)	Ways personal information in document may be made available	If the information is not provided in the way preferred by the requestor, the agency must give to the requestor—	Functional	No Relationship	N/A	N/A	N/A	0	
4.1.58(3)(a)	Ways personal information in document may be made available	the reason for not providing the information in that way; and	Functional	No Relationship	N/A	N/A	N/A	0	
4.1.58(3)(b)	Ways personal information in document may be made available	if the requestor so requests, the grounds in support of that reason.	Functional	No Relationship	N/A	N/A	N/A	0	
4.1.58(4)	Ways personal information in document may be made available	However, subsection (3)(b) does not apply if disclosing the grounds would prejudice an interest protected by any of sections 49 to 53.	Functional	No Relationship	N/A	N/A	N/A	0	
4.1.59	Responsibilities of agency before giving access to personal information	See FDE for details.	Functional	No Relationship	N/A	N/A	N/A	0	
4.2	Correction of personal information	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
4.2.58	Interpretation	See FDE for details.	Functional	No Relationship	N/A	N/A	N/A	0	
4.2.59	Individuals may make correction requests	A correction request may be made only by the individual concerned or the individual's representative.	Functional	Intersects With	Data Subject Empowerment	PRI-06	Mechanisms exist to provide authenticated data subjects the ability to: (1) Access their Personal Data (PD) that is being processed, stored and shared, except where the burden, risk or expense of providing access would be disproportionate to the benefit offered to the data subject through granting access; (2) Obtain answers on the specifics of how their PD is collected, received, processed, stored, transmitted, shared, updated and/or disposed; (3) Obtain the source(s) of their PD; (4) Obtain the categories of their PD being collected, received, processed, stored and shared; (5) Request correction to their PD due to inaccuracies; (6) Request erasure of their PD; and (7) Restrict the further collecting, receiving, processing, storing, transmitting, updated and/or sharing of their PD.	5	
4.2.60	Urgency	See FDE for details.	Functional	No Relationship	N/A	N/A	N/A	0	
4.2.61	Assistance	See FDE for details.	Functional	No Relationship	N/A	N/A	N/A	0	
4.2.62	Transfer of correction request	See FDE for details.	Functional	No Relationship	N/A	N/A	N/A	0	
4.2.63	Decision on request to correct personal information	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
4.2.63(1)	Decision on request to correct personal information	If an agency receives a correction request under IPP 7(1) and section 62 does not apply, the agency must, as soon as is reasonably practicable after receiving the request and in any case not later than 20 working days after receiving the request,—	Functional	Intersects With	Data Subject Feedback Management	PRI-06.4	Mechanisms exist to maintain a process to efficiently and effectively respond to requests, complaints, concerns and/or questions from authenticated data subjects about Personal Data (PD) the organization collects, receives, processes, stores, transmits, shares, updates and/or disposes.	5	
4.2.63(1)(a)	Decision on request to correct personal information	decide whether to grant the request; and	Functional	Intersects With	Data Subject Feedback Management	PRI-06.4	Mechanisms exist to maintain a process to efficiently and effectively respond to requests, complaints, concerns and/or questions from authenticated data subjects about Personal Data (PD) the organization collects, receives, processes, stores, transmits, shares, updates and/or disposes.	5	
4.2.63(1)(b)	Decision on request to correct personal information	notify the requestor that—	Functional	Intersects With	Data Subject Feedback Management	PRI-06.4	Mechanisms exist to maintain a process to efficiently and effectively respond to requests, complaints, concerns and/or questions from authenticated data subjects about Personal Data (PD) the organization collects, receives, processes, stores, transmits, shares, updates and/or disposes.	5	
4.2.63(1)(b)(i)	Decision on request to correct personal information	the agency has corrected, or will correct, the personal information; or	Functional	Intersects With	Data Subject Feedback Management	PRI-06.4	Mechanisms exist to maintain a process to efficiently and effectively respond to requests, complaints, concerns and/or questions from authenticated data subjects about Personal Data (PD) the organization collects, receives, processes, stores, transmits, shares, updates and/or disposes.	5	
4.2.63(1)(b)(ii)	Decision on request to correct personal information	the agency will not correct the personal information.	Functional	Intersects With	Data Subject Feedback Management	PRI-06.4	Mechanisms exist to maintain a process to efficiently and effectively respond to requests, complaints, concerns and/or questions from authenticated data subjects about Personal Data (PD) the organization collects, receives, processes, stores, transmits, shares, updates and/or disposes.	5	
4.2.63(2)	Decision on request to correct personal information	A notice under subsection (1)(b)(i) must inform the requestor of the action the agency has taken, or will take, to correct the information.	Functional	Intersects With	Data Subject Feedback Management	PRI-06.4	Mechanisms exist to maintain a process to efficiently and effectively respond to requests, complaints, concerns and/or questions from authenticated data subjects about Personal Data (PD) the organization collects, receives, processes, stores, transmits, shares, updates and/or disposes.	5	
4.2.63(3)	Decision on request to correct personal information	A notice under subsection (1)(b)(ii) must inform the requestor of—	Functional	Intersects With	Data Subject Feedback Management	PRI-06.4	Mechanisms exist to maintain a process to efficiently and effectively respond to requests, complaints, concerns and/or questions from authenticated data subjects about Personal Data (PD) the organization collects, receives, processes, stores, transmits, shares, updates and/or disposes.	5	
4.2.63(3)(a)	Decision on request to correct personal information	the reason for the agency's refusal to correct the information; and	Functional	Intersects With	Data Subject Feedback Management	PRI-06.4	Mechanisms exist to maintain a process to efficiently and effectively respond to requests, complaints, concerns and/or questions from authenticated data subjects about Personal Data (PD) the organization collects, receives, processes, stores, transmits, shares, updates and/or disposes.	5	
4.2.63(3)(b)	Decision on request to correct personal information	the requestor's entitlement to provide a statement of the correction sought and to request that it be attached to the information (if the requestor has not done so already); and	Functional	Intersects With	Data Subject Feedback Management	PRI-06.4	Mechanisms exist to maintain a process to efficiently and effectively respond to requests, complaints, concerns and/or questions from authenticated data subjects about Personal Data (PD) the organization collects, receives, processes, stores, transmits, shares, updates and/or disposes.	5	
4.2.63(3)(c)	Decision on request to correct personal information	the requestor's right to make a complaint to the Commissioner in respect of the agency's refusal to correct the information.	Functional	Intersects With	Data Subject Feedback Management	PRI-06.4	Mechanisms exist to maintain a process to efficiently and effectively respond to requests, complaints, concerns and/or questions from authenticated data subjects about Personal Data (PD) the organization collects, receives, processes, stores, transmits, shares, updates and/or disposes.	5	
4.2.64	Decision on request to attach statement of correction	N/A	Functional	No Relationship	N/A	N/A	N/A	0	

FDE #	FDE Name	Focal Document Element (FDE) Description	STRM Rationale	STRM Relationship	SCF Control	SCF #	Secure Controls Framework (SCF) Control Description	Strength of Relationship	Notes
4.2.64(1)	Decision on request to attach statement of correction	As soon as is reasonably practicable after receiving a request under IPP 7(3)(b), an agency must—	Functional	Intersects With	Data Subject Feedback Management	PRI-06.4	Mechanisms exist to maintain a process to efficiently and effectively respond to requests, complaints, concerns and/or questions from authenticated data subjects about Personal Data (PD) the organization collects, receives, processes, stores, transmits, shares, updates and/or disposes.	5	
4.2.64(1)(a)	Decision on request to attach statement of correction	decide whether to grant the request; and	Functional	Intersects With	Data Subject Feedback Management	PRI-06.4	Mechanisms exist to maintain a process to efficiently and effectively respond to requests, complaints, concerns and/or questions from authenticated data subjects about Personal Data (PD) the organization collects, receives, processes, stores, transmits, shares, updates and/or disposes.	5	
4.2.64(1)(b)	Decision on request to attach statement of correction	notify the requestor that—	Functional	Intersects With	Data Subject Feedback Management	PRI-06.4	Mechanisms exist to maintain a process to efficiently and effectively respond to requests, complaints, concerns and/or questions from authenticated data subjects about Personal Data (PD) the organization collects, receives, processes, stores, transmits, shares, updates and/or disposes.	5	
4.2.64(1)(b)(i)	Decision on request to attach statement of correction	the agency has attached the statement of correction to the information; or	Functional	Intersects With	Data Subject Feedback Management	PRI-06.4	Mechanisms exist to maintain a process to efficiently and effectively respond to requests, complaints, concerns and/or questions from authenticated data subjects about Personal Data (PD) the organization collects, receives, processes, stores, transmits, shares, updates and/or disposes.	5	
4.2.64(1)(b)(ii)	Decision on request to attach statement of correction	the agency has not attached the statement of correction to the information.	Functional	Intersects With	Data Subject Feedback Management	PRI-06.4	Mechanisms exist to maintain a process to efficiently and effectively respond to requests, complaints, concerns and/or questions from authenticated data subjects about Personal Data (PD) the organization collects, receives, processes, stores, transmits, shares, updates and/or disposes.	5	
4.2.64(2)	Decision on request to attach statement of correction	A notice under subsection (1)(b)(i) must inform the requestor of the action the agency has taken to attach the statement of correction to the information.	Functional	Intersects With	Data Subject Feedback Management	PRI-06.4	Mechanisms exist to maintain a process to efficiently and effectively respond to requests, complaints, concerns and/or questions from authenticated data subjects about Personal Data (PD) the organization collects, receives, processes, stores, transmits, shares, updates and/or disposes.	5	
4.2.64(3)	Decision on request to attach statement of correction	A notice under subsection (1)(b)(ii) must inform the requestor of the requestor's right to make a complaint to the Commissioner in respect of the agency's refusal to attach a statement of correction to the information.	Functional	Intersects With	Data Subject Feedback Management	PRI-06.4	Mechanisms exist to maintain a process to efficiently and effectively respond to requests, complaints, concerns and/or questions from authenticated data subjects about Personal Data (PD) the organization collects, receives, processes, stores, transmits, shares, updates and/or disposes.	5	
4.2.65	Extension of time limits	See FDE for details.	Functional	No Relationship	N/A	N/A	N/A	0	
4.3	Charges	See FDE for details.	Functional	No Relationship	N/A	N/A	N/A	0	
4.3.66	Charges	See FDE for details.	Functional	No Relationship	N/A	N/A	N/A	0	
4.3.67	Commissioner may authorise public sector agency to impose charge	See FDE for details.	Functional	No Relationship	N/A	N/A	N/A	0	
5	Complaints, investigations, and proceedings	N	Functional	No Relationship	N/A	N/A	N/A	0	
5.68	Interpretation	See FDE for details.	Functional	No Relationship	N/A	N/A	N/A	0	
5.68	Interference with privacy of individual	See FDE for details.	Functional	No Relationship	N/A	N/A	N/A	0	
5.1	Complaints	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
5.1.70	Complaints	See FDE for details.	Functional	No Relationship	N/A	N/A	N/A	0	
5.1.71	Who may make complaint	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
5.1.71(1)	Form of complaint	Any person may make a complaint.	Functional	No Relationship	N/A	N/A	N/A	0	
5.1.71(2)	Form of complaint	A complaint may be made on behalf of 1 or more aggrieved individuals.	Functional	No Relationship	N/A	N/A	N/A	0	
5.1.72	Form of complaint	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
5.1.72(1)	Form of complaint	A complaint must be made to the Commissioner and may be made orally or in writing.	Functional	No Relationship	N/A	N/A	N/A	0	
5.1.72(2)	Form of complaint	A complaint made orally must be put in writing as soon as practicable.	Functional	No Relationship	N/A	N/A	N/A	0	
5.1.72(3)	Form of complaint	If a person wishing to make a complaint to the Commissioner requires assistance to put the complaint in writing, the Commissioner must give that person any assistance that is reasonably necessary in the circumstances.	Functional	No Relationship	N/A	N/A	N/A	0	
5.1.73	Procedure on receipt of complaint	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
5.1.73(1)	Procedure on receipt of complaint	As soon as practicable after receiving a complaint, the Commissioner must consider the complaint and—	Functional	No Relationship	N/A	N/A	N/A	0	
5.1.73(1)(a)	Procedure on receipt of complaint	decide, in accordance with section 74, not to investigate the complaint; or	Functional	No Relationship	N/A	N/A	N/A	0	
5.1.73(1)(b)	Procedure on receipt of complaint	decide, in accordance with section 75, to refer the complaint to another person; or	Functional	No Relationship	N/A	N/A	N/A	0	
5.1.73(1)(c)	Procedure on receipt of complaint	decide, in accordance with section 76, to refer the complaint, or part of the complaint, to an overseas privacy enforcement authority; or	Functional	No Relationship	N/A	N/A	N/A	0	
5.1.73(1)(d)	Procedure on receipt of complaint	decide, in accordance with section 77, to explore the possibility of securing a settlement between the complainant and the agency whose action is the subject of the complaint; or	Functional	No Relationship	N/A	N/A	N/A	0	
5.1.73(1)(e)	Procedure on receipt of complaint	decide to investigate the complaint in accordance with subpart 2.	Functional	No Relationship	N/A	N/A	N/A	0	
5.1.73(2)	Procedure on receipt of complaint	As soon as practicable after making a decision under subsection (1), the Commissioner must—	Functional	No Relationship	N/A	N/A	N/A	0	
5.1.73(2)(a)	Procedure on receipt of complaint	advise the complainant of that decision; and	Functional	No Relationship	N/A	N/A	N/A	0	
5.1.73(2)(b)	Procedure on receipt of complaint	advise the complainant of the reasons for the decision, if the decision is made under subsection (1)(a).	Functional	No Relationship	N/A	N/A	N/A	0	
5.1.74	Commissioner may decide not to investigate complaint	See FDE for details.	Functional	No Relationship	N/A	N/A	N/A	0	
5.1.75	Referral of complaint to another person	See FDE for details.	Functional	No Relationship	N/A	N/A	N/A	0	
5.1.76	Referral of complaint to overseas privacy enforcement authority	See FDE for details.	Functional	No Relationship	N/A	N/A	N/A	0	
5.1.77	Exploring possibility of settlement and assurance without investigating complaint	See FDE for details.	Functional	No Relationship	N/A	N/A	N/A	0	
5.1.78	Referral of complaint to Director without conducting investigation	See FDE for details.	Functional	No Relationship	N/A	N/A	N/A	0	
5.2	Investigations by Commissioner	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
5.2.79	Application of this subpart	See FDE for details.	Functional	No Relationship	N/A	N/A	N/A	0	
5.2.80	Commencing investigation	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
5.2.80(1)	Commencing investigation	As the first step of an investigation, the Commissioner must notify the respondent that the Commissioner is commencing an investigation.	Functional	No Relationship	N/A	N/A	N/A	0	
5.2.80(2)	Commencing investigation	A notice given under subsection (1) must set out—	Functional	No Relationship	N/A	N/A	N/A	0	
5.2.80(2)(a)	Commencing investigation	the details of—	Functional	No Relationship	N/A	N/A	N/A	0	

FDE #	FDE Name	Focal Document Element (FDE) Description	STRM Rationale	STRM Relationship	SCF Control	SCF #	Secure Controls Framework (SCF) Control Description	Strength of Relationship	Notes
5.2.80(2)(a)(i)	Commencing investigation	the complaint; or	Functional	No Relationship	N/A	N/A	N/A	0	
5.2.80(2)(a)(ii)	Commencing investigation	the subject of the investigation; and	Functional	No Relationship	N/A	N/A	N/A	0	
5.2.80(2)(b)	Commencing investigation	the right to provide, within a reasonable time, a written response to the Commissioner.	Functional	No Relationship	N/A	N/A	N/A	0	
5.2.81	Conducting investigation	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
5.2.81(1)	Conducting investigation	The Commissioner must conduct an investigation in a timely manner.	Functional	No Relationship	N/A	N/A	N/A	0	
5.2.81(2)	Conducting investigation	During an investigation, the Commissioner may—	Functional	No Relationship	N/A	N/A	N/A	0	
5.2.81(2)(a)	Conducting investigation	hear and obtain information from any person; and	Functional	No Relationship	N/A	N/A	N/A	0	
5.2.81(2)(b)	Conducting investigation	make any inquiries.	Functional	No Relationship	N/A	N/A	N/A	0	
5.2.81(3)	Conducting investigation	At any time during an investigation, the Commissioner may decide to take no further action on a complaint or matter if the Commissioner—	Functional	No Relationship	N/A	N/A	N/A	0	
5.2.81(3)(a)	Conducting investigation	is satisfied of any of the matters set out in section 74; or	Functional	No Relationship	N/A	N/A	N/A	0	
5.2.81(3)(b)	Conducting investigation	considers that any further action is unnecessary or inappropriate.	Functional	No Relationship	N/A	N/A	N/A	0	
5.2.81(4)	Conducting investigation	As soon as practicable after making a decision under subsection (3), the Commissioner must notify the parties of—	Functional	No Relationship	N/A	N/A	N/A	0	
5.2.81(4)(a)	Conducting investigation	that decision; and	Functional	No Relationship	N/A	N/A	N/A	0	
5.2.81(4)(b)	Conducting investigation	the reason for that decision.	Functional	No Relationship	N/A	N/A	N/A	0	
5.2.81(5)	Conducting investigation	It is not necessary for the Commissioner to hold a hearing, and no person is entitled as of right to be heard by the Commissioner.	Functional	No Relationship	N/A	N/A	N/A	0	
5.2.81(6)	Conducting investigation	Any investigation held by the Commissioner must be conducted in private.	Functional	No Relationship	N/A	N/A	N/A	0	
5.2.82	Commissioner may regulate own procedure	See FDE for details.	Functional	No Relationship	N/A	N/A	N/A	0	
5.2.83	Exploring possibility of settlement and assurance during investigation	See FDE for details.	Functional	No Relationship	N/A	N/A	N/A	0	
5.2.84	Referral of complaint to Director without completing investigation	See FDE for details.	Functional	No Relationship	N/A	N/A	N/A	0	
5.2.85	Compulsory conferences of parties to complaint	See FDE for details.	Functional	No Relationship	N/A	N/A	N/A	0	
5.2.86	Power to summon persons	See FDE for details.	Functional	No Relationship	N/A	N/A	N/A	0	
5.2.87	Power to require information and documents	See FDE for details.	Functional	No Relationship	N/A	N/A	N/A	0	
5.2.88	Disclosure of information may be required despite obligation of secrecy	See FDE for details.	Functional	No Relationship	N/A	N/A	N/A	0	
5.2.89	Protection and privileges of persons required to provide information, etc	See FDE for details.	Functional	No Relationship	N/A	N/A	N/A	0	
5.2.90	Disclosed information privileged	See FDE for details.	Functional	No Relationship	N/A	N/A	N/A	0	
5.2.91	Procedure after completion of investigation relating to access to personal information	See FDE for details.	Functional	No Relationship	N/A	N/A	N/A	0	
5.2.92	Access direction	See FDE for details.	Functional	No Relationship	N/A	N/A	N/A	0	
5.2.93	Procedure after completion of investigation relating to charging	See FDE for details.	Functional	No Relationship	N/A	N/A	N/A	0	
5.2.94	Procedure after completion of other investigations	See FDE for details.	Functional	No Relationship	N/A	N/A	N/A	0	
5.2.95	Special procedure relating to intelligence and security agency	See FDE for details.	Functional	No Relationship	N/A	N/A	N/A	0	
5.2.96	Commissioner to report breach of duty or misconduct	See FDE for details.	Functional	No Relationship	N/A	N/A	N/A	0	
5.3	Proceedings before Human Rights Review Tribunal	See FDE for details.	Functional	No Relationship	N/A	N/A	N/A	0	
6	Notifiable privacy breaches and compliance notices	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
6.1	Notifiable privacy breaches	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
6.1.112	Interpretation	See FDE for details.	Functional	No Relationship	N/A	N/A	N/A	0	
6.1.113	Assessment of likelihood of serious harm being caused by privacy breach	When an agency is assessing whether a privacy breach is likely to cause serious harm in order to decide whether the breach is a notifiable privacy breach, the agency must consider the following:	Functional	No Relationship	N/A	N/A	N/A	0	
6.1.113(a)	Assessment of likelihood of serious harm being caused by privacy breach	any action taken by the agency to reduce the risk of harm following the breach:	Functional	No Relationship	N/A	N/A	N/A	0	
6.1.113(b)	Assessment of likelihood of serious harm being caused by privacy breach	whether the personal information is sensitive in nature:	Functional	No Relationship	N/A	N/A	N/A	0	
6.1.113(c)	Assessment of likelihood of serious harm being caused by privacy breach	the nature of the harm that may be caused to affected individuals:	Functional	No Relationship	N/A	N/A	N/A	0	
6.1.113(d)	Assessment of likelihood of serious harm being caused by privacy breach	the person or body that has obtained or may obtain personal information as a result of the breach (if known):	Functional	No Relationship	N/A	N/A	N/A	0	
6.1.113(e)	Assessment of likelihood of serious harm being caused by privacy breach	whether the personal information is protected by a security measure:	Functional	No Relationship	N/A	N/A	N/A	0	
6.1.113(f)	Assessment of likelihood of serious harm being caused by privacy breach	any other relevant matters.	Functional	No Relationship	N/A	N/A	N/A	0	
6.1.114	Agency to notify Commissioner of notifiable privacy breach	See FDE for details.	Functional	No Relationship	N/A	N/A	N/A	0	

FDE #	FDE Name	Focal Document Element (FDE) Description	STRM Rationale	STRM Relationship	SCF Control	SCF #	Secure Controls Framework (SCF) Control Description	Strength of Relationship	Notes
6.1.115	Agency to notify affected individual or give public notice of notifiable privacy breach	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
6.1.115(1)	Agency to notify affected individual or give public notice of notifiable privacy breach	An agency must notify an affected individual as soon as practicable after becoming aware that a notifiable privacy breach has occurred, unless subsection (2) or an exception in section 116 applies or a delay is permitted under section 116(4).	Functional	Intersects With	Incident Stakeholder Reporting	IRO-10	Mechanisms exist to timely-report incidents to applicable: (1) Internal stakeholders; (2) Affected clients & third-parties; and (3) Regulatory authorities.	5	
6.1.115(2)	Agency to notify affected individual or give public notice of notifiable privacy breach	If it is not reasonably practicable to notify an affected individual or each member of a group of affected individuals, the agency must instead give public notice of the privacy breach, unless an exception in section 116 applies or a delay is permitted under section 116(4).	Functional	Intersects With	Incident Stakeholder Reporting	IRO-10	Mechanisms exist to timely-report incidents to applicable: (1) Internal stakeholders; (2) Affected clients & third-parties; and (3) Regulatory authorities.	5	
6.1.115(3)	Agency to notify affected individual or give public notice of notifiable privacy breach	Public notice must be given—	Functional	Intersects With	Incident Stakeholder Reporting	IRO-10	Mechanisms exist to timely-report incidents to applicable: (1) Internal stakeholders; (2) Affected clients & third-parties; and (3) Regulatory authorities.	5	
6.1.115(3)(a)	Agency to notify affected individual or give public notice of notifiable privacy breach	in a form in which no affected individual is identified; and	Functional	Intersects With	Incident Stakeholder Reporting	IRO-10	Mechanisms exist to timely-report incidents to applicable: (1) Internal stakeholders; (2) Affected clients & third-parties; and (3) Regulatory authorities.	5	
6.1.115(3)(b)	Agency to notify affected individual or give public notice of notifiable privacy breach	in accordance with any regulations made under section 215(1)(a).	Functional	Intersects With	Incident Stakeholder Reporting	IRO-10	Mechanisms exist to timely-report incidents to applicable: (1) Internal stakeholders; (2) Affected clients & third-parties; and (3) Regulatory authorities.	5	
6.1.115(4)	Agency to notify affected individual or give public notice of notifiable privacy breach	If subsection (2) or an exception in section 116 is relied on, the agency must notify the affected individual or individuals at a later time if—	Functional	Intersects With	Incident Stakeholder Reporting	IRO-10	Mechanisms exist to timely-report incidents to applicable: (1) Internal stakeholders; (2) Affected clients & third-parties; and (3) Regulatory authorities.	5	
6.1.115(4)(a)	Agency to notify affected individual or give public notice of notifiable privacy breach	circumstances change so that subsection (2) or the exception no longer applies; and	Functional	Intersects With	Incident Stakeholder Reporting	IRO-10	Mechanisms exist to timely-report incidents to applicable: (1) Internal stakeholders; (2) Affected clients & third-parties; and (3) Regulatory authorities.	5	
6.1.115(4)(b)	Agency to notify affected individual or give public notice of notifiable privacy breach	at that later time, there is or remains a risk that the privacy breach will cause serious harm to the affected individual or individuals.	Functional	Intersects With	Incident Stakeholder Reporting	IRO-10	Mechanisms exist to timely-report incidents to applicable: (1) Internal stakeholders; (2) Affected clients & third-parties; and (3) Regulatory authorities.	5	
6.1.115(5)	Agency to notify affected individual or give public notice of notifiable privacy breach	A failure to notify an affected individual or give public notice under this section may be an interference with privacy under this Act (see section 69(2)(a)(iv)).	Functional	No Relationship	N/A	N/A	N/A	0	
6.1.116	Exceptions to or delay in complying with requirement to notify affected individuals or give public notice of notifiable privacy breach	See FDE for details.	Functional	No Relationship	N/A	N/A	N/A	0	
6.1.117	Requirements for notification	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
6.1.117(1)	Requirements for notification	A notification to the Commissioner under section 114 must—	Functional	Intersects With	Incident Stakeholder Reporting	IRO-10	Mechanisms exist to timely-report incidents to applicable: (1) Internal stakeholders; (2) Affected clients & third-parties; and (3) Regulatory authorities.	5	
6.1.117(1)(a)	Requirements for notification	describe the notifiable privacy breach, including—	Functional	Intersects With	Incident Stakeholder Reporting	IRO-10	Mechanisms exist to timely-report incidents to applicable: (1) Internal stakeholders; (2) Affected clients & third-parties; and (3) Regulatory authorities.	5	
6.1.117(1)(a)(i)	Requirements for notification	the number of affected individuals (if known); and	Functional	Intersects With	Incident Stakeholder Reporting	IRO-10	Mechanisms exist to timely-report incidents to applicable: (1) Internal stakeholders; (2) Affected clients & third-parties; and (3) Regulatory authorities.	5	
6.1.117(1)(a)(ii)	Requirements for notification	the identity of any person or body that the agency suspects may be in possession of personal information as a result of the privacy breach (if known); and	Functional	Intersects With	Incident Stakeholder Reporting	IRO-10	Mechanisms exist to timely-report incidents to applicable: (1) Internal stakeholders; (2) Affected clients & third-parties; and (3) Regulatory authorities.	5	
6.1.117(1)(b)	Requirements for notification	explain the steps that the agency has taken or intends to take in response to the privacy breach, including whether any affected individual has been or will be contacted; and	Functional	Intersects With	Incident Stakeholder Reporting	IRO-10	Mechanisms exist to timely-report incidents to applicable: (1) Internal stakeholders; (2) Affected clients & third-parties; and (3) Regulatory authorities.	5	
6.1.117(1)(c)	Requirements for notification	if the agency is relying on section 115(2) to give public notice of the breach, set out the reasons for relying on that section; and	Functional	Intersects With	Incident Stakeholder Reporting	IRO-10	Mechanisms exist to timely-report incidents to applicable: (1) Internal stakeholders; (2) Affected clients & third-parties; and (3) Regulatory authorities.	5	
6.1.117(1)(d)	Requirements for notification	if the agency is relying on an exception, or is delaying notifying an affected individual or giving public notice, under section 116, state the exception relied on and set out the reasons for relying on it or state the reasons why a delay is needed and the expected period of delay; and	Functional	Intersects With	Incident Stakeholder Reporting	IRO-10	Mechanisms exist to timely-report incidents to applicable: (1) Internal stakeholders; (2) Affected clients & third-parties; and (3) Regulatory authorities.	5	
6.1.117(1)(e)	Requirements for notification	state the names or give a general description of any other agencies that the agency has contacted about the privacy breach and the reasons for having done so; and	Functional	Intersects With	Incident Stakeholder Reporting	IRO-10	Mechanisms exist to timely-report incidents to applicable: (1) Internal stakeholders; (2) Affected clients & third-parties; and (3) Regulatory authorities.	5	
6.1.117(1)(f)	Requirements for notification	give details of a contact person within the agency for inquiries.	Functional	Intersects With	Incident Stakeholder Reporting	IRO-10	Mechanisms exist to timely-report incidents to applicable: (1) Internal stakeholders; (2) Affected clients & third-parties; and (3) Regulatory authorities.	5	
6.1.117(2)	Requirements for notification	A notification to an affected individual under section 115 or a representative under section 116(3) must—	Functional	Intersects With	Incident Stakeholder Reporting	IRO-10	Mechanisms exist to timely-report incidents to applicable: (1) Internal stakeholders; (2) Affected clients & third-parties; and (3) Regulatory authorities.	5	
6.1.117(2)(a)	Requirements for notification	describe the notifiable privacy breach and state whether the agency has or has not identified any person or body that the agency suspects may be in possession of the affected individual's personal information (but, except as provided in subsection (3), must not include any particulars that could identify that person or body); and	Functional	Intersects With	Incident Stakeholder Reporting	IRO-10	Mechanisms exist to timely-report incidents to applicable: (1) Internal stakeholders; (2) Affected clients & third-parties; and (3) Regulatory authorities.	5	
6.1.117(2)(b)	Requirements for notification	explain the steps taken or intended to be taken by the agency in response to the privacy breach; and	Functional	Intersects With	Incident Stakeholder Reporting	IRO-10	Mechanisms exist to timely-report incidents to applicable: (1) Internal stakeholders; (2) Affected clients & third-parties; and (3) Regulatory authorities.	5	
6.1.117(2)(c)	Requirements for notification	where practicable, set out the steps the affected individual may wish to take to mitigate or avoid potential loss or harm (if any); and	Functional	Intersects With	Incident Stakeholder Reporting	IRO-10	Mechanisms exist to timely-report incidents to applicable: (1) Internal stakeholders; (2) Affected clients & third-parties; and (3) Regulatory authorities.	5	
6.1.117(2)(d)	Requirements for notification	confirm that the Commissioner has been notified under section 114; and	Functional	Intersects With	Incident Stakeholder Reporting	IRO-10	Mechanisms exist to timely-report incidents to applicable: (1) Internal stakeholders; (2) Affected clients & third-parties; and (3) Regulatory authorities.	5	
6.1.117(2)(e)	Requirements for notification	state that the individual has the right to make a complaint to the Commissioner; and	Functional	Intersects With	Incident Stakeholder Reporting	IRO-10	Mechanisms exist to timely-report incidents to applicable: (1) Internal stakeholders; (2) Affected clients & third-parties; and (3) Regulatory authorities.	5	
6.1.117(2)(f)	Requirements for notification	give details of a contact person within the agency for inquiries.	Functional	Intersects With	Incident Stakeholder Reporting	IRO-10	Mechanisms exist to timely-report incidents to applicable: (1) Internal stakeholders; (2) Affected clients & third-parties; and (3) Regulatory authorities.	5	
6.1.117(3)	Requirements for notification	A notification to an affected individual or their representative may identify a person or body that has obtained or may obtain that affected individual's personal information (where the identity is known) if the agency believes on reasonable grounds that identification is necessary to prevent or lessen a serious threat to the life or health of the affected individual or another individual.	Functional	Intersects With	Incident Stakeholder Reporting	IRO-10	Mechanisms exist to timely-report incidents to applicable: (1) Internal stakeholders; (2) Affected clients & third-parties; and (3) Regulatory authorities.	5	

FDE #	FDE Name	Focal Document Element (FDE) Description	STRM Rationale	STRM Relationship	SCF Control	SCF #	Secure Controls Framework (SCF) Control Description	Strength of Relationship	Notes
6.1.117(4)	Requirements for notification	A notification to an affected individual must not include any particulars about any other affected individuals.	Functional	Intersects With	Incident Stakeholder Reporting	IRO-10	Mechanisms exist to timely-report incidents to applicable: (1) Internal stakeholders; (2) Affected clients & third-parties; and (3) Regulatory authorities.	5	
6.1.117(5)	Requirements for notification	In order to comply with the requirement under sections 114 and 115 that notification must be made as soon as practicable, an agency may provide the information required by this section incrementally. However, any information that is available at any point in time must be provided as soon as practicable after that point in time.	Functional	Intersects With	Incident Stakeholder Reporting	IRO-10	Mechanisms exist to timely-report incidents to applicable: (1) Internal stakeholders; (2) Affected clients & third-parties; and (3) Regulatory authorities.	5	
6.1.118	Offence to fail to notify Commissioner	See FDE for details.	Functional	No Relationship	N/A	N/A	N/A	0	
6.1.119	Section 211 does not apply to processes and proceedings relating to failure to notify notifiable privacy breach	See FDE for details.	Functional	No Relationship	N/A	N/A	N/A	0	
6.1.120	Liability for actions of officers, employees, agents, and members of agencies	See FDE for details.	Functional	No Relationship	N/A	N/A	N/A	0	
6.1.121	Knowledge of officers, employees, agents, and members of agencies to be treated as knowledge of employers, principal agencies, and agencies	See FDE for details.	Functional	No Relationship	N/A	N/A	N/A	0	
6.1.122	Publication of identity of agencies in certain circumstances	See FDE for details.	Functional	No Relationship	N/A	N/A	N/A	0	
6.2	Compliance notices	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
6.2.123	Compliance notices	See FDE for details.	Functional	No Relationship	N/A	N/A	N/A	0	
6.2.124	Issuing compliance notice	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
6.2.124(1)	Issuing compliance notice	The Commissioner must consider the following factors before issuing a compliance notice: whether there is another means under this Act or another Act for dealing with the breach;	Functional	No Relationship	N/A	N/A	N/A	0	
6.2.124(1)(a)	Issuing compliance notice	the seriousness of the breach:	Functional	No Relationship	N/A	N/A	N/A	0	
6.2.124(1)(b)	Issuing compliance notice	the likelihood of a repeat of the breach:	Functional	No Relationship	N/A	N/A	N/A	0	
6.2.124(1)(c)	Issuing compliance notice	the number of people who may be or are affected by the breach:	Functional	No Relationship	N/A	N/A	N/A	0	
6.2.124(1)(d)	Issuing compliance notice	whether the agency has been co-operative in all dealings with the Commissioner;	Functional	No Relationship	N/A	N/A	N/A	0	
6.2.124(1)(e)	Issuing compliance notice	the likely costs to the agency of complying with the notice.	Functional	No Relationship	N/A	N/A	N/A	0	
6.2.124(2)	Issuing compliance notice	However, each of those factors need be considered only to the extent that—	Functional	No Relationship	N/A	N/A	N/A	0	
6.2.124(2)(a)	Issuing compliance notice	it is relevant in the Commissioner's view:	Functional	No Relationship	N/A	N/A	N/A	0	
6.2.124(2)(b)	Issuing compliance notice	information about the factor is readily available to the Commissioner.	Functional	No Relationship	N/A	N/A	N/A	0	
6.2.124(3)	Issuing compliance notice	Before issuing a compliance notice, the Commissioner must provide the agency concerned with a reasonable opportunity to comment on a written notice that—	Functional	No Relationship	N/A	N/A	N/A	0	
6.2.124(3)(a)	Issuing compliance notice	describes the breach, citing the relevant statutory provision or provisions; and	Functional	No Relationship	N/A	N/A	N/A	0	
6.2.124(3)(b)	Issuing compliance notice	summarises the conclusions reached about the factors in subsection (1) that have been considered by the Commissioner; and	Functional	No Relationship	N/A	N/A	N/A	0	
6.2.124(3)(c)	Issuing compliance notice	describes particular steps that the Commissioner considers need to be taken to remedy the breach (if any) and any conditions the Commissioner considers appropriate (if any); and	Functional	No Relationship	N/A	N/A	N/A	0	
6.2.124(3)(d)	Issuing compliance notice	states the date or dates by which the Commissioner proposes that the agency must remedy the breach and report to the Commissioner (if any).	Functional	No Relationship	N/A	N/A	N/A	0	
6.2.124(4)	Issuing compliance notice	In each case, the Commissioner must determine the period of time that will give the agency a reasonable opportunity to comment, taking into account the circumstances of the case.	Functional	No Relationship	N/A	N/A	N/A	0	
6.2.124(5)	Issuing compliance notice	See FDE for details.	Functional	No Relationship	N/A	N/A	N/A	0	
6.2.125	Form of compliance notice	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
6.2.125(1)	Form of compliance notice	A compliance notice issued to an agency must—	Functional	No Relationship	N/A	N/A	N/A	0	
6.2.125(1)(a)	Form of compliance notice	state the name of the agency; and	Functional	No Relationship	N/A	N/A	N/A	0	
6.2.125(1)(b)	Form of compliance notice	describe the breach, citing the relevant statutory provision or provisions; and	Functional	No Relationship	N/A	N/A	N/A	0	
6.2.125(1)(c)	Form of compliance notice	require the agency to remedy the breach; and	Functional	No Relationship	N/A	N/A	N/A	0	
6.2.125(1)(d)	Form of compliance notice	inform the agency of the right of appeal under section 131; and	Functional	No Relationship	N/A	N/A	N/A	0	
6.2.125(1)(e)	Form of compliance notice	contain any other information required by any regulations made under section 215(1)(c).	Functional	No Relationship	N/A	N/A	N/A	0	
6.2.125(2)	Form of compliance notice	A compliance notice issued to an agency may—	Functional	No Relationship	N/A	N/A	N/A	0	
6.2.125(2)(a)	Form of compliance notice	identify particular steps that the Commissioner considers need to be taken by the agency to remedy the breach;	Functional	No Relationship	N/A	N/A	N/A	0	
6.2.125(2)(b)	Form of compliance notice	include conditions that the Commissioner considers are appropriate:	Functional	No Relationship	N/A	N/A	N/A	0	
6.2.125(2)(c)	Form of compliance notice	state the date or dates by which the agency must—	Functional	No Relationship	N/A	N/A	N/A	0	
6.2.125(2)(c)(i)	Form of compliance notice	remedy the breach; and	Functional	No Relationship	N/A	N/A	N/A	0	
6.2.125(2)(c)(ii)	Form of compliance notice	report to the Commissioner on the steps taken to do so:	Functional	No Relationship	N/A	N/A	N/A	0	
6.2.125(2)(d)	Form of compliance notice	include other information that the Commissioner considers would be useful.	Functional	No Relationship	N/A	N/A	N/A	0	
6.2.126	Agency response to compliance notice	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
6.2.126(1)	Agency response to compliance notice	An agency that is issued with a compliance notice must take steps to comply with the notice, including taking any particular steps specified in the notice.	Functional	Intersects With	Statutory, Regulatory & Contractual Compliance	CPL-01	Mechanisms exist to facilitate the identification and implementation of relevant statutory, regulatory and contractual controls.	5	
6.2.126(2)	Agency response to compliance notice	The agency must—	Functional	Intersects With	Statutory, Regulatory & Contractual Compliance	CPL-01	Mechanisms exist to facilitate the identification and implementation of relevant statutory, regulatory and contractual controls.	5	
6.2.126(2)(a)	Agency response to compliance notice	comply with the notice as soon as practicable after receiving it unless it is cancelled or suspended; and	Functional	Intersects With	Statutory, Regulatory & Contractual Compliance	CPL-01	Mechanisms exist to facilitate the identification and implementation of relevant statutory, regulatory and contractual controls.	5	
6.2.126(2)(b)	Agency response to compliance notice	if applicable, remedy the breach by the date stated in the notice unless that date is varied or modified.	Functional	Intersects With	Statutory, Regulatory & Contractual Compliance	CPL-01	Mechanisms exist to facilitate the identification and implementation of relevant statutory, regulatory and contractual controls.	5	
6.2.127	Commissioner may vary or cancel compliance notice	See FDE for details.	Functional	No Relationship	N/A	N/A	N/A	0	
6.2.128	Commissioner's power to obtain information	See FDE for details.	Functional	No Relationship	N/A	N/A	N/A	0	

FDE #	FDE Name	Focal Document Element (FDE) Description	STRM Rationale	STRM Relationship	SCF Control	SCF #	Secure Controls Framework (SCF) Control Description	Strength of Relationship	Notes
6.2.129	Publication of details of compliance notice	See FDE for details.	Functional	No Relationship	N/A	N/A	N/A	0	
6.2.130	Enforcement of compliance notice	See FDE for details.	Functional	No Relationship	N/A	N/A	N/A	0	
6.2.131	Appeal against compliance notice or Commissioner's decision to vary or cancel notice	See FDE for details.	Functional	No Relationship	N/A	N/A	N/A	0	
6.2.132	Interim order suspending compliance notice pending appeal	See FDE for details.	Functional	No Relationship	N/A	N/A	N/A	0	
6.2.133	Remedies, costs, and enforcement	See FDE for details.	Functional	No Relationship	N/A	N/A	N/A	0	
6.2.134	Application of Human Rights Act 1993	See FDE for details.	Functional	No Relationship	N/A	N/A	N/A	0	
6.2.135	Commissioner may be represented in proceedings	See FDE for details.	Functional	No Relationship	N/A	N/A	N/A	0	
7	Sharing, accessing, and matching personal information	See FDE for details.	Functional	No Relationship	N/A	N/A	N/A	0	
8	Prohibiting onward transfer of personal information received in New Zealand from overseas	See FDE for details.	Functional	No Relationship	N/A	N/A	N/A	0	
9	Miscellaneous provisions	See FDE for details.	Functional	No Relationship	N/A	N/A	N/A	0	